

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES 1 80		
2. AMENDMENT/MODIFICATION NUMBER A001			3. EFFECTIVE DATE 04/15/2026		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY FEDERAL HIGHWAY ADMINISTRATION CENTRAL FEDERAL LANDS HIGHWAY DIVISION 12300 WEST DAKOTA AVENUE, SUITE 360 LAKEWOOD, COLORADO 80228 ATTENTION: Douglas Whitcomb			7. ADMINISTERED BY (If other than Item 6)		CODE			
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)					☒ 9A. AMENDMENT OF SOLICITATION NUMBER 6982AF25R000016			
					☒ 9B. DATED (SEE ITEM 11) 4/10/2026			
					☐ 10A. MODIFICATION OF CONTRACT/ORDER NUMBER			
					☐ 10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE						
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS								
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended.								
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning <u>0</u> * copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.								
12. ACCOUNTING AND APPROPRIATION DATA (If required)								
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.								
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.							
☐								
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).							
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
☐	D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not ☒ is required to sign this document and return *See Item 14 copies to the issuing office.								
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)								
Replaced RFQ with the attached RFQ								
*FAILURE TO ACKNOWLEDGE THIS AMENDMENT IN BLOCK 19 OF THE SF 1442 BY THE DESIGNATED DATE AND HOUR SPECIFIED IN THE SOLICITATION MAY RESULT IN REJECTION OF YOUR BID (REFER TO ITEM 11.) Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.								
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)				
15B. CONTRACTOR/OFFEROR				15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		
						16C. DATE SIGNED		
(Signature of person authorized to sign)				(Signature of Contracting Officer)				



**FEDERAL HIGHWAY ADMINISTRATION
CENTRAL FEDERAL LANDS HIGHWAY DIVISION**

**REQUEST FOR QUALIFICATIONS
FOR
CONSTRUCTION INSPECTION SERVICES**

RFQ #6982AF25R000016

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1. INTRODUCTION

This Request for Qualifications (RFQ) is for non-personal construction inspection services for all phases of road and bridge projects administered by Central Federal Lands Highway Division (CFLHD) of the Federal Highway Administration (FHWA) for various Federal Land Management Agencies (FLMA). CFLHD provides engineering and construction services for road and bridge projects for FLMA's and other entities on projects in the states of Arizona, California, Colorado, Hawaii, Kansas, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, Utah, and Wyoming. These projects include work on roadways, bridges, and trails which encompasses a wide range of work from new projects to rehabilitation of existing environments.

To ensure adequate oversight of ongoing and future projects, and to support the mission of the FHWA, the CFLHD intends to procure multiple-award Indefinite Delivery Indefinite Quantity (IDIQ) contracts for construction inspection services. CFLHD anticipates awarding up to five (5) IDIQ contracts for Construction Inspection (CI) services. Projects will primarily involve improvements to rural low-volume roadways in environmentally sensitive areas. This RFQ is being issued as an unrestricted competitive acquisition in accordance with Revolutionary Federal Acquisition Regulation Overhaul (RFO) 6.101, Full and Open Competition with at least one (1) award reserved for a Small Business Concern. The NAICS code for this procurement is 541330, Engineering Services. All firms responding to this RFQ are required to be licensed to practice architect-engineer services (A&E) within one (1) or more of the States served by CFLHD, with the capacity to perform CI in all fourteen (14) States (States are listed under Section 4. General Information & Requirements of this RFQ). "Firm" when used in connection with architect-engineer services as defined in 40 U.S.C. 1102, means any individual, partnership, corporation, association, or other legal entity permitted by law to practice the professions of architecture or engineering and that submits a response to this RFQ.

The Government intends to award the IDIQ contracts with a five-year (i.e. 60 month) period of performance, with an option to extend for an additional six (6) months. Each task order issued under these contracts will include a defined Statement of Work and will be negotiated on an individual basis. The Government does not guarantee the issuance of any specific number of task orders or a particular volume of work beyond the stated minimum guarantee.

1.1. Summary of Work

Firms shall provide construction inspection services that encompass comprehensive oversight and quality assurance for highway, road, and bridge projects. These services are essential to ensuring that all construction activities adhere to contract specifications, engineering standards, and applicable regulatory requirements. Key responsibilities include, but are not limited to:

- 1.1.1. On-Site Inspection: Monitor daily construction activities to verify compliance with approved plans, specifications, and safety standards.
- 1.1.2. Contract Inspection Support: Assist with documentation, progress tracking, and coordination between contractors, project engineers, and project stakeholders.
- 1.1.3. Materials Testing Oversight: Observe and report on field and laboratory testing of construction materials to ensure quality and performance standards are met.
- 1.1.4. Documentation and Reporting: Maintain detailed inspection logs, prepare daily reports, and support the development of project records for audits and closeout.
- 1.1.5. Environmental and Safety Compliance: Ensure adherence to environmental protection measures and occupational safety requirements throughout the construction process.
- 1.1.6. Change Order and Claims Support: Provide technical input and documentation to support the evaluation of contract modifications and claims.
- 1.1.7. Coordination and Communication: Facilitate effective communication among project teams, including federal, state, and local agencies, contractors, and consultants.

These services are performed by experienced personnel who are assigned to project sites for short and long-term durations, based on the complexity and schedule of each project. Inspectors are required to possess a thorough understanding of federal highway construction standards and procedures, particularly those established by the Federal Highway Administration (FHWA), including the [*Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects*](#) (e.g., FP-14 or FP-24).

2. PERSONNEL REQUIREMENTS

2.1. Personnel Classification Overview

2.1.1. Contracting Officer's Technical Adviser. The COTA provides on-site construction contract oversight and construction inspection within limited delegations and delivers day-to-day project engineering and management services for the duration of a construction project. The COTA manages and administers all assigned work through all phases of the construction project. They serve as the principal contact and technical liaison between CFLHD, client agencies, the construction contractor, and other project stakeholders, such as landowners and resource agencies. The COTA works closely and cooperatively with the Contracting Officer (CO), Construction Operations Engineer (COE), Contracting Officer's Representative (COR), and the Government Project Engineer to monitor, document, and advise on contract actions. Additionally, they oversee project inspection staff and prepare final project closeout documentation. The COTA performs this work primarily at the project location.

2.1.2. On-Site Construction Inspector. The Construction Inspector performs construction inspection and technical support duties on construction projects. The CI monitors daily construction activities, materials, and workmanship for compliance with contract provisions, drawings, and specifications. They conduct quality assurance activities, including materials sampling or witnessing, verifying construction surveys, and monitoring safety and environmental controls. Additionally, they provide administrative and engineering support by maintaining detailed daily logs, assisting with progress estimates, assisting with contract modifications, and ensuring project records are accurate and complete.

There are two classification levels for Construction Inspectors—CI-I and CI-II—each with distinct qualifications and responsibilities. The CI-I position is considered a junior-level role, while the CI-II position carries greater responsibility and requires more advanced experience. Construction Inspectors perform their duties primarily at the project site.

2.1.3. Additional Services. Additional Services encompass specialized consultant engineering, inspection, and project management tasks required to support the core project team. Personnel in these roles provide targeted expertise for specific assignments, including constructability reviews, complex schedule development and analysis, contract dispute and claims review, and post-construction records inspection. Duties may also include specialized inspection such as precast/prestressed concrete inspection at off-site facilities, resource monitoring and inspection, forensic engineering, and non-destructive testing. Because these roles address unique project needs, the Government negotiates all such services individually based on the specific scope of each assignment. Personnel performing these specialized functions may perform this work either on-site or off-site as dictated by the task order.

2.2. Contracting Officer's Technical Advisor (COTA)

2.2.1. COTA Duties

- a. Technical Advisor: Function as the Government's advisor for contract compliance; manage the project inspection team and delegate assignments; and supervise Firm's employees. Performs CI-II duties as needed.
- b. Construction Oversight & Quality Assurance: Ensure construction contractor adheres to plans and specifications through regular inspection; verify contractor surveying, staking, sampling, and testing methods; and document progress or issues using photography, videography, and daily project diaries.
- c. Schedule & Risk Management: Review critical path and bar chart schedules for compliance with construction contract and reasonableness; anticipate and mitigate delays; and perform Critical Path Method (CPM) analyses to evaluate time impacts.
- d. Submittal & Document Control: Process and review shop drawings and submittals for contract compliance within required timeframes; maintain tracking systems for submissions; perform quality control on construction documents; document work of contractor and subcontractors; and ensure all records are filed in accordance with CFLHD records maintenance processes.
- e. Progress Estimate Management: Review measurement notes, generate receiving reports, and maintain pay item totals and final quantities to monitor budget; verify contractor invoices (Progress Estimates) and semi-final/final pay note quantities; and utilize specialized software like QL-Pay for statistical analysis in accordance with established CFLHD processes.
- f. Contract Modifications & Negotiations: Identify and develop scopes of work; assist CFLHD with preparation of independent cost estimates; and review technical analyses of contractor proposals to support the CFLHD during negotiations.
- g. Labor Compliance & Safety Enforcement: Verify job site postings are maintained; and monitor safety compliance, including reviewing Accident Prevention Plans and reporting unsafe activities in the field.
- h. Project Communications & Facilitation: Organize and facilitate progress meetings and partnering sessions; prepare meeting minutes; manage project visitors as requested and assist Government personnel with inquiries from the public.

- i. Project Closeout & Final Acceptance: Prepare and monitor punch lists for corrective actions; coordinate and lead detailed final inspections; and manage all closeout requirements, including responses to quality assurance findings.

2.2.2. COTA Qualifications

- a. Education, Certification, and Professional Experience: Three (3) years of experience in the on-site project management and administration of highway/bridge construction projects, in roles such as a Project Engineer, Project Manager, Construction Manager, or equivalent positions AND one of the following:
 - Licensed Professional Engineer;
 - Registered Engineer in Training;
 - Bachelor of Science in Civil Engineering, Construction Management, or related field;
 - Associate of Science degree in Engineering Technology or a related field.

OR

Ten (10) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, project administration roles, or equivalent positions.

- b. Communication and Leadership: Ability to function as the Government's technical advisor, enforcing contract compliance within delegated authorities while monitoring, documenting, and advising on contract status. Demonstrate excellent verbal and written communication, effective listening skills, and the ability to manage construction teams and supervise inspectors.
- c. Technical Proficiency and Construction Inspection: Proficient in interpreting transportation construction contracts, specifications, and plans; managing costs (overruns/underruns); analyzing CPM/bar chart schedules; and reviewing progress payments for accuracy. Direct understanding of safety/labor laws, QC/QA principles, MUTCD, AASHTO, ASTM, ADA, and ABA standards, as well as experience with environmental mitigation oversight (wetlands, endangered species, hazardous materials, etc.).
- d. Field Operations and Software Proficiency: Experience obtaining field measurements and documenting project progress using photography, videography, and specialized reporting. Proficient with computer software programs such as Microsoft Office, Primavera P6, and Google Workspace.

2.3. On-Site Construction Inspector (CI-II)

2.3.1. CI-II Duties

- a. Technical Support: Support the COTA or Project Engineer in contract administration, including filling in as the COTA for up to 14 calendar days when necessary. Provide inspection support services and technical field support to lower-level inspectors in accordance with the Contract Inspector's Handbook and established Federal Lands Highway (FLH) manuals. Inspect contractor work, drawings, and specifications to verify conformity with all construction contract requirements.
- b. Construction Inspection: Inspect all construction contract items (Earthwork, Pavements, Bridge, etc.) to ensure workmanship, materials, and equipment meet contract plans and specifications. Monitor operations for adherence to approved Traffic Control Plans (MUTCD), environmental permits (SWPPP), erosion control, and QC/QA plans. Verify contractor survey work and measure/record quantities; perform mathematical computations to check the accuracy of contractor measurement notes and progress estimates. Immediately notify the COTA/PE of non-compliance; document and recommend corrections for non-complying work, safety/health deficiencies, or required field adjustments and technical solutions. Provide knowledge transfer to Government staff, assist in onboarding new Government inspectors, and provide on-the-job support regarding project processes.
- c. Materials Inspection and Testing: Witness materials sampling (e.g., soil density, concrete slump/air) and assist with preparing samples and transmittal forms for laboratory shipment. Verify that on-site testing equipment is calibrated and evaluate the construction contractor's testing system against project statistical acceptance criteria.
- d. Project Records and Reporting: Maintain detailed contract documentation via Government systems, including clear Daily Inspection Reports (IDRs) and chronological pictorial records (photos/video). Review contractor as-built drawings for accuracy and provide technical input for routine and complex submittals, such as shop drawings and CPM schedules to support the Government's compliance determinations.

2.3.2. CI-II Qualifications

- a. Education, Certification, and Professional Experience: Five (5) years of on-site inspection of highway or bridge construction projects and one of the following:
 - Licensed Professional Engineer (PE);
 - Registered Engineer in Training (EIT);

- Bachelor of Science in Civil Engineering, Construction Management, or a related field;
- Associate of Science in Civil Engineering Technology or a related field.

OR

Seven (7) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, or equivalent positions.

- b. Technical Skills and Knowledge:** Expertise in inspecting highway and bridge work items including: General Requirements (Survey, QC, Traffic), Earthwork (Blasting, Geosynthetics), Retaining Systems (MSE Walls, Soldier Piles, Rockfall Protection), Aggregate Bases, Asphalt/Rigid Pavements, Bridge Construction (Piles, Shafts, Structural Steel/Concrete), Incidental Construction (Drainage, Utilities, Guardrail), and Erosion/Traffic Control. Proficient in interpreting transportation infrastructure contracts, plans, and specifications; direct knowledge of MUTCD, AASHTO (Geometric Design and Materials), ADA/ABA Standards, and ASTM standards. Deep understanding of QC/QA principles, sampling/testing procedures, and methods of acceptance—including statistical analysis of highway materials. Skilled in maintaining accurate project records (IDRs), checking contractor survey/staking, and performing complex mathematical engineering computations for measurement verification. Ability to monitor and document contractor compliance regarding safety and labor laws, environmental permits (SWPPP), and traffic control plans. Proficient with productivity software such as Microsoft Office, Primavera P6, and Google Workspace.

2.4. On-Site Construction Inspector (CI-I)

2.4.1. CI-I Duties

- a. Contract Compliance:** Provide inspection services according to the Contract Inspector's Handbook and FLH manuals to verify contractor work conforms to all contract drawings and specifications.
- b. Construction Inspection:** Monitor basic contract items (e.g. earthwork, drainage, paving) to ensure workmanship, materials, and equipment meet contract requirements. Observe contractor operations for compliance with approved traffic control (MUTCD), permits, and QC/QA plans. Measure and record field work, performing mathematical computations to verify the accuracy and completeness of contractor measurement notes and progress estimates. Immediately notify the COTA/PE of non-compliance, safety/health deficiencies, or plan errors; document and recommend corrective actions for technical review.

- c. Materials Inspection and Testing: Witness materials sampling (soil density, concrete slump/air) and assist with the preparation and shipment of samples to designated labs, including all transmittal documentation. Ensure all on-site testing equipment is properly calibrated and maintained in good working order.
- d. Project Records and Reporting: Maintain detailed project documentation via Government systems, including clear Daily Inspection Reports (IDRs) detailing labor and equipment usage. Manage a chronological record of progress through labeled photos and video; assist in the review of routine contractor submittals and project record maintenance.

2.4.2. CI-I Qualifications

- a. Education, Certification, and Professional Experience: Licensed Professional Engineer; Engineer in Training; hold a Bachelor of Science in Civil Engineering, Construction Management, or related field; hold an Associate of Science in Engineering Technology or related field.

OR

Three (3) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, or equivalent positions.

- b. Technical Skills and Knowledge: Expertise in inspecting highway and bridge work, including: General Requirements (Sampling/Testing), Earthwork (Excavation, Blasting, Geosynthetics), Retaining Systems (Riprap, Gabions), Aggregate Bases, Asphalt Pavements/Treatments, Bridge Construction (Structural Concrete/Repair), Incidental Construction (Drainage, Guardrail, Fencing), and Erosion/Traffic Control. Proficient in interpreting transportation construction contracts, specifications, and plans to ensure field compliance. Skilled in maintaining accurate project records and IDRs, as well as performing the mathematical engineering computations required for measurement checks. Ability to execute sampling and testing procedures and monitor contractor operations for compliance with environmental permits (Erosion Control) and Traffic Control plans. Proficient with productivity software such as Microsoft Office, Primavera P6, and Google Workspace.

2.5. Other Classifications (OC)

2.5.1. OC Duties

Perform specialized tasks within the transportation field as defined and negotiated based on specific project needs and identified requirements.

2.5.2. OC Qualifications

Education, certification, and experience requirements will be established on a case-by-case basis according to individual Task Order specifications.

3. RESPONSE SUBMISSION REQUIREMENTS

3.1. Response Submission Delivery

Firms shall submit their response to this RFQ electronically via email to CFLContracts@dot.gov. Firms are responsible for ensuring their email submission, including all attachments, does not exceed the Government's maximum email file size limit of 25 MB. If multiple emails are required due to file size, each email must clearly identify the total number of emails being sent (e.g. "Email 1 of 3").

The subject line of the email shall read:

"RFQ [RFQ Number] – [Offeror Name] Response Submission.

Firms must ensure that the Government receives a submission to this RFQ no later than 2:00 PM MDT, May 11, 2026.

3.2. Submission Format

3.2.1. Firms must ensure that submission documents meet all form and content requirements.

3.2.2. Firms that have the qualifications to perform the services described in this RFQ and wish to be considered for contract award shall submit a qualifications package to include a Standard Form 330 (SF 330) Architect-Engineer Qualifications, parts I and II, as well as a written response to the evaluation factors 1-5 outlined in RFQ Attachment A - Evaluation Factors. The SF 330 may be obtained from [Standard Form 330 - Architect-Engineer Qualifications](#). Failure to submit a package with all required documentation outlined in this synopsis may result in disqualification of the firm.

3.2.3. Submissions must not exceed 50 pages in total. Any pages beyond page 50 will not be evaluated. For the purposes of this RFQ, a 'page' is defined as one printed side of a sheet of paper. A single-sided sheet counts as one page; a double-sided sheet counts as two pages. Supporting materials such as maps, graphs, and charts may be included in an appendix and will not count toward the page limit. The cover letter, tab dividers, amendments to this RFQ, and back cover are also excluded from the page count. However, SF 330 will be counted toward the 50-page limit. Please note that SF 330s are not required for all subcontractors, subconsultants, or joint venture partners.

3.2.4. All documentation should be in an 8.5 x 11 inch electronic format using a minimum 10 pt. Times New Roman Font when responding to Evaluation Factors. It should also be developed and assembled in a manner that chronologically corresponds to and addresses the Evaluation Factors listed in RFQ Attachment A – Evaluation Factors.

3.2.5. Include, as an attachment, an organization chart of the proposed team. The chart should clearly identify the names and roles of all key personnel listed in Section E of SF 330, along with their associated firms as indicated in Section C. In applicable section of SF 330, be sure to include the following information:

- a.** Unique Entity Identifier (UEI)
- b.** State professional registration numbers

Please note: Information must be fully included within the SF 330; incorporation by reference is not permitted.

3.3. Submission Prohibitions

3.3.1. A submission related to this RFQ shall not:

- a.** Restrict the rights of the Government or otherwise qualify the response to this RFQ;
- b.** Include, for consideration in this procurement process or subsequent contract negotiations, incorrect information that the Firm knew or should have known was materially incorrect;
- c.** Include more than one submission, per Firm, to this RFQ;
- d.** Include any information concerning costs (in specific dollars or numbers) associated with the Technical Qualifications;
- e.** Include the Firm's own contract terms and conditions.

4. GENERAL INFORMATION

This RFQ serves as the sole notification for this acquisition; no additional announcements will be issued. This is an RFQ, not a Request for Proposals (RFP). All Firms must hold a valid license to practice A&E in at least one (1) of the states within CFLHD's geographic region (See RFQ Section 4.3.) with the capacity to perform CI in all fourteen (14) states .

4.1. Primary Requirement

The principal firm, along with its subcontractors, shall deliver post-award, on-site construction contract administration and inspection support services for transportation-related construction projects. Personnel will be assigned to project locations on a short-term basis—typically ranging from approximately 3 to 24 months—and must be available on short notice. All assigned staff are expected to possess relevant experience in construction inspection and contract administration.

All services shall be performed in accordance with the construction policies and procedures established by CFLHD including the [Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects](#) (e.g., FP-14 or FP-24). As needed, the firm may also be tasked with specialized support, or regional claims support. The principal firm will maintain full responsibility for the daily oversight and management of its personnel, as well as those of its subcontractors.

4.2. Notice of Professional Licensure, Insurance, and SAM Registration Requirements

Registration in the System for Award Management ([Home | SAM.gov](#)) is required for consideration under this acquisition. The A-E Firm must be properly licensed in one (1) of the states within CFLHD's geographical region.

4.3. Geographic Location of Work

Task Orders issued under each IDIQ contract will be primarily for selected construction contracts awarded by CFLHD, and located in, but not limited to, remote areas of Hawaii, Arizona, California, Colorado, Kansas, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, Utah, and Wyoming. It is imperative that the principal firm or its subcontractors be able to provide sufficient resources in remote locations to support CFLHD program.

4.4. Minimum/Maximum Orders, Contract Term

IDIQ contracts will be awarded for a five (5) year period of performance, with an option to extend the contract for an additional six (6) months. Task orders issued under the IDIQ contracts will include a specific Statement of Work and will be negotiated individually. The minimum order guarantee is \$10,000 per IDIQ contract, with a shared maximum contract value not to exceed 5-year total of \$100,000,000. The Government makes no representation as to the number of task orders or the actual amount of work to be ordered. Contractors are not guaranteed work in excess of the minimum guarantee.

4.5. Extent of Competition

This requirement is being advertised on a full and open basis with a single reserve for one (1) small business concern, if qualified.

4.6. Communications

Firms shall reference RFQ # 6982AF25R000016 in all communications related to this solicitation, and direct such communications to the following Points of Contact:

Primary Point of Contact:

Douglas Whitcomb, Contract Specialist

Email: cflcontracts@dot.gov

Secondary Point of Contact:

Kelly Palmer, Senior Technical Specialist

Email: cflcontracts@dot.gov

Questions regarding this acquisition must be received via e-mail no later than May 4, 2026 2:00 pm, MDT, addressed to CFLContracts@dot.gov. Answers to all Firm questions will be posted as soon as practicable.

5. EVALUATION & CONTRACT AWARD

5.1. Evaluation Process

- 5.1.1.** The evaluation process, consistent with the qualifications-based selection requirements of the Brooks Act (40 U.S.C. Chapter 11) and the procedures outlined in RFO Part 36 for architect-engineer services, is structured to award the contract not necessarily to the Firm with the lowest proposed cost, but to the Firm offering the best overall combination of qualifications and attributes in accordance with the established evaluation criteria.

The evaluation will follow a two-phase process. Phase I consists of a qualifications review in which firms submit SF 330 packages and responses to evaluation factors; the Government will shortlist the most highly qualified firms and invite those shortlisted firms to deliver in-person Oral Presentations at the CFLHD office in Lakewood, Colorado. Phase II issues a Request for Proposal to the top five ranked firms, who will then submit cost proposals. If proposed costs are determined unreasonable or not in the Government's best interest, the Government may proceed to negotiate with the next highest-ranked firm.

5.2. Firm Selection

The Firm selection process will be conducted in two (2) phases. Evaluations from Phase I and Phase II will inform the Government's selection of the most highly qualified Firm(s) for subsequent negotiations.

- 5.2.1. Phase I - Qualifications Review:** Submission of Technical Qualifications (SF 330 and Responses to Evaluation Factors). The Government will review all submissions and develop a short-list of the most highly qualified firms.

Short-listed firms and their designated team representatives will be invited to make an Oral Presentation at the Central Federal Lands Highway Division (CFLHD) office in Lakewood, Colorado. The selected firms will be contacted directly to schedule their presentation times.

- 5.2.2. Phase II – Request for Proposal (RFP):** The top five (5) ranked Firms will be sent a Request for Proposal, which requires the Firm to submit costs associated with cost categories. If the Government determines that the proposed cost is unreasonable, not allocable or not in the Government's best interest, it may then enter into negotiations with the next highest-ranked Firm (See RFQ Section 5.4.3.).

5.3. Oral Presentations

- 5.3.1. For short-listed Firms, Oral Presentations are mandatory. The Oral Presentations will be for a duration of one (1) hour. Firms should leave time for potential questions from evaluators. The Oral Presentations will be held in-person at 12300 W. Dakota Ave. Lakewood, CO 80228. Any additional details regarding the Oral Presentation will be provided by the Government at the time of scheduling.
- 5.3.2. Oral Presentations are only open to the invited Firms, Evaluation Team members, and any technical consultants who are selected by the Government to provide assistance to the Evaluation Team.
- 5.3.3. Oral Presentations provide an opportunity for Firms to explain and clarify their responses and for the Government to better understand the practical application of the services as applicable. Firms must not materially alter their responses and Presentations will be limited to addressing the items detailed in the RFQ Evaluation factors. Firm pricing shall not be discussed or provided during Oral Presentations.
- 5.3.4. Evaluation Team members will independently evaluate each Oral Presentation in accordance with RFQ Evaluation factors.

5.4. Contract Award Process

- 5.4.1. In accordance with the Brooks Act (40 U.S.C. Chapter 11) and the architect-engineer (A&E) selection procedures prescribed in RFO Subpart 36.202, the Government will utilize a qualifications-based selection process to award the Indefinite-Delivery, Indefinite-Quantity (IDIQ) Firm-Fixed-Price contract resulting from this solicitation. Consistent with these authorities, price will not be evaluated during the initial qualification and ranking phase.
- 5.4.2. The Government will evaluate, and rank Firms based solely on demonstrated competence, professional qualifications, specialized experience, capacity to perform the required construction inspection services, past performance, and other evaluation factors identified in this solicitation. Following evaluation, the Government will select, in order of preference, the most highly qualified firms.
- 5.4.3. The Government will then enter into negotiations with the highest-ranked firm to establish fair and reasonable firm-fixed prices for the contract. If the Government is unable to reach agreement with the top-ranked firm, negotiations will be terminated and initiated with the next firm in order of qualifications. This process will continue until an agreement is reached or the list of qualified firms is exhausted.
- 5.4.4. The resulting IDIQ contract will establish firm-fixed unit prices for construction inspection services, and individual task orders will be issued in accordance with the ordering procedures set forth in the contract.

ATTACHMENT A - EVALUATION FACTORS

The Firm must address all items detailed below in Standard Form 330 and provide, in sequence, the information and documentation as required (referenced with the associated item references). The Firm must also detail the response page number for each item in the appropriate space below. Evaluation Team members will evaluate each Evaluation Factor within the Firm's submission. Firms will be evaluated through their Standard Form 330 submission based on Evaluation Factors 1 through 3, which are listed in order of descending importance. This Attachment A document will be used as a reference to locate responses to evaluation factors and will not count towards the overall page limit.

Firm Legal Entity Name:		
Submission Page # (Firm Completes)	Item Ref.	Evaluation Factors
(Example: Page #5)	Evaluation Factor 1 – Capacity to Accomplish the Work	Provide a description of the Firm's current operational capacity, including the total size of the workforce (inclusive of both prime and subcontracted personnel). Identify the number of staff who currently hold Professional Engineer (PE) licenses, and specify the Engineering Firm License, Certificate of Authorization, or other state-issued approval that permits the Firm to practice architecture and engineering (A&E). Include the license number(s) and the state(s) of issuance. Describe the Firm's approach to deploying and supporting personnel across multiple concurrent projects located in different states, including remote or hard-to-reach locations. Explain the Firm's ability to mobilize staff on short notice while maintaining continuity of operations and quality of service. Provide the Firm's recruitment and retention plan for maintaining qualified personnel during both normal and peak workload periods. Include strategies for staffing stability, surge capacity, and continuity of operations.

	Evaluation Factor 2 – Personnel Qualifications - Specialized Experience and Technical Competence	Provide a detailed description of the professional qualifications of the Firm's key personnel proposed for the Contracting Officer's Technical Advisor (COTA) and Consultant Inspector (CI-I and CI-II) positions. The Firm shall submit these qualifications using the Standard Form 330 (SF-330), clearly demonstrating each individual's capability to perform the required construction inspection services and to meet all performance expectations associated with the contract. Describe the key duties and responsibilities performed by the Firm's personnel at the project site, including both construction inspection activities and any associated administrative or management functions that support successful project execution.

	Evaluation Factor 3 - Past Performance	Provide a list of up to ten (10) construction inspection services contracts awarded to the firm and completed within the past six (6) years that are similar in size, scope, and location to the work described in this solicitation that demonstrate the firm's successful performance. Successful performance is defined as the Firm's ability to manage task orders effectively, providing trained and acceptable personnel for the positions required, providing personnel in the timeframes required, and competently completing corporate and administrative functions such as preparing task order cost proposals and invoicing. Provide narrative responses for each project that addresses the key duties performed by the Firm's personnel on the project site. For each contract provide the following information: 1. Contract Number, Project Number, and Project Name 2. Client work performed for 3. Client point of contact, phone number, and email address 4. Description of the contract 5. Award Date 6. Period of performance for contract 7. Contract Scope and administration/inspection duties performed. 8. Performed work as Prime or Subcontractor. 9. Total Value of the Construction Contract managed/inspected. 10. Total Value of the Construction Inspection/Administration contract for the project 11. Total Value of the Construction Inspection/Administration contract performed by your firm. 12. Describe the services provided by your firm on the contract, as either management/administration, inspection, or both. 13. Describe the project type, and if it includes Roads, Bridges, or Other Features.

		14. Describe the Project Location as either Urban and Rural 15. Past performance documentation from the client agency. Documentation submitted to identify contracts will not be counted toward the total page limit. The Government will obtain past performance from a review of records in Contractor Performance Assessment Reporting System (CPARS).
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ATTACHMENT B – STANDARD FORM 330

ARCHITECT-ENGINEER QUALIFICATIONS

OMB Control Number: 9000-0157
Expiration Date: 1/31/2027

Paperwork Reduction Act Statement - This information collection meets the requirements of 44 USC § 3507, as amended by section 2 of the Paperwork Reduction Act of 1995. You do not need to answer these questions unless we display a valid Office of Management and Budget (OMB) control number. The OMB control number for this collection is 9000-0157. We estimate that it will take 29 hours (25 hours for part 1 and 4 hours for Part 2) to read the instructions, gather the facts, and answer the questions. Send only comments relating to our time estimate, including suggestions for reducing this burden, or any other aspects of this collection of information to: U.S. General Services Administration, Regulatory Secretariat Division (M1V1CB), 1800 F Street, NW, Washington, DC 20405.

PURPOSE

Federal agencies use this form to obtain information from architect-engineer (A-E) firms about their professional qualifications. Federal agencies select firms for A-E contracts on the basis of professional qualifications as required by 40 U.S.C. chapter 11, Selection of Architects Engineers, and Part 36 of the Federal Acquisition Regulation (FAR).

The Selection of Architects and Engineers statute requires the public announcement of requirements for A-E services (with some exceptions provided by other statutes), and the selection of at least three of the most highly qualified firms based on demonstrated competence and professional qualifications according to specific criteria published in the announcement. The Act then requires the negotiation of a contract at a fair and reasonable price starting first with the most highly qualified firm.

The information used to evaluate firms is from this form and other sources, including performance evaluations, any additional data requested by the agency, and interviews with the most highly qualified firms and their references.

GENERAL INSTRUCTIONS

Part I presents the qualifications for a specific contract.

Part II presents the general qualifications of a firm or a specific branch office of a firm. Part II has two uses:

1. An A-E firm may submit Part II to the appropriate central, regional or local office of each Federal agency to be kept on file. A public announcement is not required for certain contracts, and agencies may use Part II as a basis for selecting at least three of the most highly qualified firms for discussions prior to requesting submission of Part I. Firms are encouraged to update Part II on file with agency offices, as appropriate, according to FAR Part 36. If a firm has branch offices, submit a separate Part II for each branch office seeking work.

2. Prepare a separate Part II for each firm that will be part of the team proposed for a specific contract and submitted with Part I. If a firm has branch offices, submit a separate Part II for each branch office that has a key role on the team.

INDIVIDUAL AGENCY INSTRUCTIONS

Individual agencies may supplement these instructions. For example, they may limit the number of projects or number of pages submitted in Part I in response to a public announcement for a particular project. Carefully comply with any agency instructions when preparing and submitting this form. Be as concise as possible and provide only the information requested by the agency.

DEFINITIONS

Architect-Engineer Services: Defined in FAR 2.101.

Branch Office: A geographically distinct place of business or subsidiary office of a firm that has a key role on the team.

Discipline: Primary technical capabilities of key personnel, as evidenced by academic degree, professional registration, certification, and/or extensive experience.

Firm: Defined in FAR 36.102.

Key Personnel: Individuals who will have major contract responsibilities and/or provide unusual or unique expertise.

SPECIFIC INSTRUCTIONS**Part I - Contract-Specific Qualifications****Section A. Contract Information.**

1. Title and Location. Enter the title and location of the contract for which this form is being submitted, exactly as shown in the public announcement or agency request.

2. Public Notice Date. Enter the posted date of the agency's notice on the Federal Business Opportunity website (FedBizOpps), other form of public announcement or agency request for this contract.

3. Solicitation or Project Number. Enter the agency's solicitation number and/or project number, if applicable, exactly as shown in the public announcement or agency request for this contract.

Section B. Architect-Engineer Point of Contact.

4-8. Name, Title, Name of Firm, Telephone Number, Fax (Facsimile) Number and E-mail (Electronic Mail) Address. Provide information for a representative of the prime contractor or joint venture that the agency can contact for additional information.

Section C. Proposed Team.

9-11. Firm Name, Address, and Role in This Contract.

Provide the contractual relationship, name, full mailing address, and a brief description of the role of each firm that will be involved in performance of this contract. List the prime contractor or joint venture partners first. If a firm has branch offices, indicate each individual branch office that will have a key role on the team. The named subcontractors and outside associates or consultants must be used, and any change must be approved by the contracting officer. (See FAR Part 52 Clause "Subcontractors and Outside Associates and Consultants (Architect-Engineer Services)"). Attach an additional sheet in the same format as Section C if needed.

Section D. Organizational Chart of Proposed Team.

As an attachment after Section C, present an organizational chart of the proposed team showing the names and roles of all key personnel listed in Section E and the firm they are associated with as listed in Section C.

Section E. Resumes of Key Personnel Proposed for this Contract.

Complete this section for each key person who will participate in this contract. Group by firm, with personnel of the prime contractor or joint venture partner firms first. The following blocks must be completed for each resume:

12. Name. Self-explanatory.

13. Role in this contract. Self-explanatory.

14. Years Experience. Total years of relevant experience (block 14a), and years of relevant experience with current firm, but not necessarily the same branch office (block 14b).

15. Firm Name and Location. Name, city and state of the firm where the person currently works, which must correspond with one of the firms (or branch office of a firm, if appropriate) listed in Section C.

16. Education. Provide information on the highest relevant academic degree(s) received. Indicate the area(s) of specialization for each degree.

17. Current Professional Registration. Provide information on current relevant professional registration(s) in a State or possession of the United States, Puerto Rico, or the District of Columbia according to FAR Part 36.

18. Other Professional Qualifications. Provide information on any other professional qualifications relating to this contract, such as education, professional registration, publications, organizational memberships, certifications, training, awards, and foreign language capabilities.

19. Relevant Projects. Provide information on up to five projects in which the person had a significant role that demonstrates the person's capability relevant to her/his proposed role in this contract. These projects do not necessarily have to be any of the projects presented in Section F for the project team if the person was not involved in any of those projects or the person worked on other projects that were more relevant than the team projects in Section F. Use the check box provided to indicate if the project was performed with any office of the current firm. If any of the professional services or construction projects are not complete, leave Year Completed blank and indicate the status in Brief Description and Specific Role (block (3)).

Section F. Example Projects Which Best Illustrate Proposed Team's Qualifications for this Contract.

Select projects where multiple team members worked together, if possible, that demonstrate the team's capability to perform work similar to that required for this contract. Complete one Section F for each project. Present ten projects, unless otherwise specified by the agency. Complete the following blocks for each project:

20. Example Project Key Number. Start with "1" for the first project and number consecutively.

21. Title and Location. Title and location of project or contract. For an indefinite delivery contract, the location is the geographic scope of the contract.

22. Year Completed. Enter the year completed of the professional services (such as planning, engineering study, design, or surveying), and/or the year completed of construction, if applicable. If any of the professional services or the construction projects are not complete, leave Year Completed blank and indicate the status in Brief Description of Project and Relevance to this Contract (block 24).

23a. Project Owner. Project owner or user, such as a government agency or installation, an institution, a corporation or private individual.

23b. Point of Contact Name. Provide name of a person associated with the project owner or the organization which contracted for the professional services, who is very familiar with the project and the firm's (or firms') performance.

23c. Point of Contact Telephone Number. Self-explanatory.

24. Brief Description of Project and Relevance to this Contract. Indicate scope, size, cost, principal elements and special features of the project. Discuss the relevance of the example project to this contract. Enter any other information requested by the agency for each example project.

25. Firms from Section C Involved with this Project. Indicate which firms (or branch offices, if appropriate) on the project team were involved in the example project, and their roles. List in the same order as Section C.

Section G. Key Personnel Participation in Example Projects.

This matrix is intended to graphically depict which key personnel identified in Section E worked on the example projects listed in Section F. Complete the following blocks (see example below).

26. and 27. Names of Key Personnel and Role in this Contract. List the names of the key personnel and their proposed roles in this contract in the same order as they appear in Section E.

28. Example Projects Listed in Section F. In the column under each project key number (see block 29) and for each key person, place an "X" under the project key number for participation in the same or similar role.

29. Example Projects Key. List the key numbers and titles of the example projects in the same order as they appear in Section F.

Section H. Additional Information.

30. Use this section to provide additional information specifically requested by the agency or to address selection criteria that are not covered by the information provided in Sections A-G.

Section I. Authorized Representative.

31. and 32. Signature of Authorized Representative and Date. An authorized representative of a joint venture or the prime contractor must sign and date the completed form. Signing attests that the information provided is current and factual, and that all firms on the proposed team agree to work on the project. Joint ventures selected for negotiations must make available a statement of participation by a principal of each member of the joint venture.

33. Name and Title. Self-explanatory.

SAMPLE ENTRIES FOR SECTION G (MATRIX)

26. NAMES OF KEY PERSONNEL (From Section E, Block 12)	27. ROLE IN THIS CONTRACT (From Section E, Block 13)	28. EXAMPLE PROJECTS LISTED IN SECTION F (Fill in "Example Projects Key" section below first, before completing table. Place "X" under project key number for participation in same or similar role.)									
		1	2	3	4	5	6	7	8	9	10
Jane A. Smith	Chief Architect	X		X							
Joseph B. Williams	Chief Mechanical Engineer	X	X	X	X						
Tara C. Donovan	Chief Electrical Engineer	X	X		X						

29. EXAMPLE PROJECTS KEY

NUMBER	TITLE OF EXAMPLE PROJECT (From Section F)	NUMBER	TITLE OF EXAMPLE PROJECT (From Section F)
1	Federal Courthouse, Denver, CO	6	XYZ Corporation Headquarters, Boston, MA
2	Justin J. Wilson Federal Building, Baton Rouge, LA	7	Founder's Museum, Newport, RI

Part II - General Qualifications

See the **"General Instructions"** on page 1 for firms with branch offices. Prepare Part II for the specific branch office seeking work if the firm has branch offices.

1. Solicitation Number. If Part II is submitted for a specific contract, insert the agency's solicitation number and/or project number, if applicable, exactly as shown in the public announcement or agency request.

2a-2e. Firm (or Branch Office) Name and Address. Self-explanatory.

3. Year Established. Enter the year the firm (or branch office, if appropriate) was established under the current name.

4. Unique Entity Identifier. Insert the unique entity identifier issued by the entity designated at SAM. See FAR part 4.6.

5. Ownership.

a. Type. Enter the type of ownership or legal structure of the firm (sole proprietor, partnership, corporation, joint venture, etc.).

b. Small Business Status. Refer to the North American Industry Classification System (NAICS) code in the public announcement, and indicate if the firm is a small business according to the current size standard for that NAICS code (for example, Engineering Services (part of NAICS 541330), Architectural Services (NAICS 541310), Surveying and Mapping Services (NAICS 541370)). The small business categories and the internet website for the NAICS codes appear in FAR part 19. Contact the requesting agency for any questions. Contact your local U.S. Small Business Administration office for any questions regarding Business Status.

6a-6c. Point of Contact. Provide this information for a representative of the firm that the agency can contact for additional information. The representative must be empowered to speak on contractual and policy matters.

7. Name of Firm. Enter the name of the firm if Part II is prepared for a branch office.

8a-8c. Former Firm Names. Indicate any other previous names for the firm (or branch office) during the last six years. Insert the year that this corporate name change was effective and the associated unique entity identifier. This information is used to review past performance on Federal contracts.

9. Employees by Discipline. Use the relevant disciplines and associated function codes shown at the end of these instructions and list in the same numerical order. After the listed disciplines, write in any additional disciplines and leave the function code blank. List no more than 20 disciplines. Group remaining employees under "Other Employees" in column b. Each person can be counted only once according to his/her primary function. If Part II is prepared for a firm (including all branch offices), enter the number of employees by disciplines in column c(1). If Part II is prepared for a branch office, enter the number of employees by discipline in column c(2) and for the firm in column c(1).

10. Profile of Firm's Experience and Annual Average Revenue for Last 5 Years. Complete this block for the firm or branch office for which this Part II is prepared. Enter the experience categories which most accurately reflect the firm's technical capabilities and project experience. Use the relevant experience categories and associated profile codes shown at the end of these instructions, and list in the same numerical order. After the listed experience categories, write in any unlisted relevant project experience categories and leave the profile codes blank. For each type of experience, enter the appropriate revenue index number to reflect the professional services revenues received annually (averaged over the last 5 years) by the firm or branch office for performing that type of work. A particular project may be identified with one experience category or it may be broken into components, as best reflects the capabilities and types of work performed by the firm. However, do not double count the revenues received on a particular project.

11. Annual Average Professional Services Revenues of Firm for Last 3 Years. Complete this block for the firm or branch office for which this Part II is prepared. Enter the appropriate revenue index numbers to reflect the professional services revenues received annually (averaged over the last 3 years) by the firm or branch office. Indicate Federal work (performed directly for the Federal Government, either as the prime contractor or subcontractor), non-Federal work (all other domestic and foreign work, including Federally-assisted projects), and the total.

12. Authorized Representative. An authorized representative of the firm or branch office must sign and date the completed form. Signing attests that the information provided is current and factual. Provide the name and title of the authorized representative who signed the form.

List of Disciplines (*Function Codes*)

Code	Description	Code	Description
01	Acoustical Engineer	32	Hydraulic Engineer
02	Administrative	33	Hydrographic Surveyor
03	Aerial Photographer	34	Hydrologist
04	Aeronautical Engineer	35	Industrial Engineer
05	Archeologist	36	Industrial Hygienist
06	Architect	37	Interior Designer
07	Biologist	38	Land Surveyor
08	CADD Technician	39	Landscape Architect
09	Cartographer	40	Materials Engineer
10	Chemical Engineer	41	Materials Handling Engineer
11	Chemist	42	Mechanical Engineer
12	Civil Engineer	43	Mining Engineer
13	Communications Engineer	44	Oceanographer
14	Computer Programmer	45	Photo Interpreter
15	Construction Inspector	46	Photogrammetrist
16	Construction Manager	47	Planner: Urban/Regional
17	Corrosion Engineer	48	Project Manager
18	Cost Engineer/Estimator	49	Remote Sensing Specialist
19	Ecologist	50	Risk Assessor
20	Economist	51	Safety/Occupational Health Engineer
21	Electrical Engineer	52	Sanitary Engineer
22	Electronics Engineer	53	Scheduler
23	Environmental Engineer	54	Security Specialist
24	Environmental Scientist	55	Soils Engineer
25	Fire Protection Engineer	56	Specifications Writer
26	Forensic Engineer	57	Structural Engineer
27	Foundation/Geotechnical Engineer	58	Technician/Analyst
28	Geodetic Surveyor	59	Toxicologist
29	Geographic Information System Specialist	60	Transportation Engineer
30	Geologist	61	Value Engineer
31	Health Facility Planner	62	Water Resources Engineer

List of Experience Categories (*Profile Codes*)

Code	Description	Code	Description
A01	Acoustics, Noise Abatement	E01	Ecological & Archeological Investigations
A02	Aerial Photography; Airborne Data and Imagery Collection and Analysis	E02	Educational Facilities; Classrooms
A03	Agricultural Development; Grain Storage; Farm Mechanization	E03	Electrical Studies and Design
A04	Air Pollution Control	E04	Electronics
A05	Airports; Nav aids; Airport Lighting; Aircraft Fueling	E05	Elevators; Escalators; People-Movers
A06	Airports; Terminals and Hangars; Freight Handling	E06	Embassies and Chanceries
A07	Arctic Facilities	E07	Energy Conservation; New Energy Sources
A08	Animal Facilities	E08	Engineering Economics
A09	Anti-Terrorism/Force Protection	E09	Environmental Impact Studies, Assessments or Statements
A10	Asbestos Abatement	E10	Environmental and Natural Resource Mapping
A11	Auditoriums & Theaters	E11	Environmental Planning
A12	Automation; Controls; Instrumentation	E12	Environmental Remediation
		E13	Environmental Testing and Analysis
B01	Barracks; Dormitories	F01	Fallout Shelters; Blast-Resistant Design
B02	Bridges	F02	Field Houses; Gyms; Stadiums
C01	Cartography	F03	Fire Protection
C02	Cemeteries (<i>Planning & Relocation</i>)	F04	Fisheries; Fish ladders
C03	Charting: Nautical and Aeronautical	F05	Forensic Engineering
C04	Chemical Processing & Storage	F06	Forestry & Forest products
C05	Child Care/Development Facilities	G01	Garages; Vehicle Maintenance Facilities; Parking Decks
C06	Churches; Chapels	G02	Gas Systems (Propane; Natural, Etc.)
C07	Coastal Engineering	G03	Geodetic Surveying: Ground and Air-borne
C08	Codes; Standards; Ordinances	G04	Geographic Information System Services: Development, Analysis, and Data Collection
C09	Cold Storage; Refrigeration and Fast Freeze	G05	Geospatial Data Conversion: Scanning, Digitizing, Compilation, Attributing, Scribing, Drafting
C10	Commercial Building (<i>low rise</i>) ; Shopping Centers	G06	Graphic Design
C11	Community Facilities	H01	Harbors; Jetties; Piers, Ship Terminal Facilities
C12	Communications Systems; TV; Microwave	H02	Hazardous Materials Handling and Storage
C13	Computer Facilities; Computer Service	H03	Hazardous, Toxic, Radioactive Waste Remediation
C14	Conservation and Resource Management	H04	Heating; Ventilating; Air Conditioning
C15	Construction Management	H05	Health Systems Planning
C16	Construction Surveying	H06	Highrise; Air-Rights-Type Buildings
C17	Corrosion Control; Cathodic Protection; Electrolysis	H07	Highways; Streets; Airfield Paving; Parking Lots
C18	Cost Estimating; Cost Engineering and Analysis; Parametric Costing; Forecasting	H08	Historical Preservation
C19	Cryogenic Facilities	H09	Hospital & Medical Facilities
D01	Dams (<i>Concrete; Arch</i>)	H10	Hotels; Motels
D02	Dams (<i>Earth; Rock</i>); Dikes; Levees	H11	Housing (<i>Residential, Multi-Family; Apartments; Condominiums</i>)
D03	Desalinization (<i>Process & Facilities</i>)	H12	Hydraulics & Pneumatics
D04	Design-Build - Preparation of Requests for Proposals	H13	Hydrographic Surveying
D05	Digital Elevation and Terrain Model Development		
D06	Digital Orthophotography		
D07	Dining Halls; Clubs; Restaurants		
D08	Dredging Studies and Design		

List of Experience Categories (*Profile Codes continued*)

Code	Description	Code	Description
I01	Industrial Buildings; Manufacturing Plants	P09	Product, Machine Equipment Design
I02	Industrial Processes; Quality Control	P10	Pneumatic Structures, Air-Support Buildings
I03	Industrial Waste Treatment	P11	Postal Facilities
I04	Intelligent Transportation Systems	P12	Power Generation, Transmission, Distribution
I05	Interior Design; Space Planning	P13	Public Safety Facilities
I06	Irrigation; Drainage	R01	Radar; Sonar; Radio & Radar Telescopes
J01	Judicial and Courtroom Facilities	R02	Radio Frequency Systems & Shieldings
L01	Laboratories; Medical Research Facilities	R03	Railroad; Rapid Transit
L02	Land Surveying	R04	Recreation Facilities (Parks, Marinas, Etc.)
L03	Landscape Architecture	R05	Refrigeration Plants/Systems
L04	Libraries; Museums; Galleries	R06	Rehabilitation (Buildings; Structures; Facilities)
L05	Lighting (Interior; Display; Theater, Etc.)	R07	Remote Sensing
L06	Lighting (Exteriors; Streets; Memorials; Athletic Fields, Etc.)	R08	Research Facilities
M01	Mapping Location/Addressing Systems	R09	Resources Recovery; Recycling
M02	Materials Handling Systems; Conveyors; Sorters	R10	Risk Analysis
M03	Metallurgy	R11	Rivers; Canals; Waterways; Flood Control
M04	Microclimatology; Tropical Engineering	R12	Roofing
M05	Military Design Standards	S01	Safety Engineering; Accident Studies; OSHA Studies
M06	Mining & Mineralogy	S02	Security Systems; Intruder & Smoke Detection
M07	Missile Facilities (Silos; Fuels; Transport)	S03	Seismic Designs & Studies
M08	Modular Systems Design; Pre-Fabricated Structures or Components	S04	Sewage Collection, Treatment and Disposal
N01	Naval Architecture; Off-Shore Platforms	S05	Soils & Geologic Studies; Foundations
N02	Navigation Structures; Locks	S06	Solar Energy Utilization
N03	Nuclear Facilities; Nuclear Shielding	S07	Solid Wastes; Incineration; Landfill
O01	Office Buildings; Industrial Parks	S08	Special Environments; Clean Rooms, Etc.
O02	Oceanographic Engineering	S09	Structural Design; Special Structures
O03	Ordnance; Munitions; Special Weapons	S10	Surveying; Platting; Mapping; Flood Plain Studies
P01	Petroleum Exploration; Refining	S11	Sustainable Design
P02	Petroleum and Fuel (Storage and Distribution)	S12	Swimming Pools
P03	Photogrammetry	S13	Storm Water Handling & Facilities
P04	Pipelines (Cross-Country - Liquid & Gas)	T01	Telephone Systems (<i>Rural; Mobile; Intercom, Etc.</i>)
P05	Planning (Community, Regional, Areawide and State)	T02	Testing & Inspection Services
P06	Planning (Site, Installation, and Project)	T03	Traffic & Transportation Engineering
P07	Plumbing & Piping Design	T04	Topographic Surveying and Mapping
P08	Prisons & Correctional Facilities	T05	Towers (<i>Self-Supporting & Guyed Systems</i>)
		T06	Tunnels & Subways

List of Experience Categories (*Profile Codes continued*)

Code	Description
U01	Unexploded Ordnance Remediation
U02	Urban Renewals; Community Development
U03	Utilities (Gas and Steam)
V01	Value Analysis; Life-Cycle Costing
W01	Warehouses & Depots
W02	Water Resources; Hydrology; Ground Water
W03	Water Supply; Treatment and Distribution
W04	Wind Tunnels; Research/Testing Facilities Design
Z01	Zoning; Land Use Studies

ARCHITECT-ENGINEER QUALIFICATIONS

PART I - CONTRACT-SPECIFIC QUALIFICATIONS

A. CONTRACT INFORMATION

1. TITLE AND LOCATION *(City and State)*

2. PUBLIC NOTICE DATE

3. SOLICITATION OR PROJECT NUMBER

B. ARCHITECT-ENGINEER POINT OF CONTACT

4. NAME AND TITLE

5. NAME OF FIRM

6. TELEPHONE NUMBER

7. FAX NUMBER

8. E-MAIL ADDRESS

C. PROPOSED TEAM

(Complete this section for the prime contractor and all key subcontractors.)

	(Check)				9. FIRM NAME	10. ADDRESS	11. ROLE IN THIS CONTRACT
	PRIME	J-V	PARTNER	SUBCON-TRACTOR			
a.					☐ CHECK IF BRANCH OFFICE		
b.					☐ CHECK IF BRANCH OFFICE		
c.					☐ CHECK IF BRANCH OFFICE		
d.					☐ CHECK IF BRANCH OFFICE		
e.					☐ CHECK IF BRANCH OFFICE		
f.					☐ CHECK IF BRANCH OFFICE		

D. ORGANIZATIONAL CHART OF PROPOSED TEAM

☐ (Attached)

E. RESUMES OF KEY PERSONNEL PROPOSED FOR THIS CONTRACT*(Complete one Section E for each key person.)*

12. NAME	13. ROLE IN THIS CONTRACT	14. YEARS EXPERIENCE	
		a. TOTAL	b. WITH CURRENT FIRM
15. FIRM NAME AND LOCATION <i>(City and State)</i>			
16. EDUCATION <i>(Degree and Specialization)</i>		17. CURRENT PROFESSIONAL REGISTRATION <i>(State and Discipline)</i>	
18. OTHER PROFESSIONAL QUALIFICATIONS <i>(Publications, Organizations, Training, Awards, etc.)</i>			

19. RELEVANT PROJECTS

a.	(1) TITLE AND LOCATION <i>(City and State)</i>	(2) YEAR COMPLETED	
		PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
(3) BRIEF DESCRIPTION <i>(Brief scope, size, cost, etc.)</i> AND SPECIFIC ROLE		☐ Check if project performed with current firm	
b.	(1) TITLE AND LOCATION <i>(City and State)</i>	(2) YEAR COMPLETED	
		PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
(3) BRIEF DESCRIPTION <i>(Brief scope, size, cost, etc.)</i> AND SPECIFIC ROLE		☐ Check if project performed with current firm	
c.	(1) TITLE AND LOCATION <i>(City and State)</i>	(2) YEAR COMPLETED	
		PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
(3) BRIEF DESCRIPTION <i>(Brief scope, size, cost, etc.)</i> AND SPECIFIC ROLE		☐ Check if project performed with current firm	
d.	(1) TITLE AND LOCATION <i>(City and State)</i>	(2) YEAR COMPLETED	
		PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
(3) BRIEF DESCRIPTION <i>(Brief scope, size, cost, etc.)</i> AND SPECIFIC ROLE		☐ Check if project performed with current firm	
e.	(1) TITLE AND LOCATION <i>(City and State)</i>	(2) YEAR COMPLETED	
		PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
(3) BRIEF DESCRIPTION <i>(Brief scope, size, cost, etc.)</i> AND SPECIFIC ROLE		☐ Check if project performed with current firm	

F. EXAMPLE PROJECTS WHICH BEST ILLUSTRATE PROPOSED TEAM'S QUALIFICATIONS FOR THIS CONTRACT <i>(Present as many projects as requested by the agency, or 10 projects, if not specified. Complete one Section F for each project.)</i>		20. EXAMPLE PROJECT KEY NUMBER
21. TITLE AND LOCATION <i>(City and State)</i>	22. YEAR COMPLETED	
	PROFESSIONAL SERVICES	CONSTRUCTION <i>(If applicable)</i>
23. PROJECT OWNER'S INFORMATION		
a. PROJECT OWNER	b. POINT OF CONTACT NAME	c. POINT OF CONTACT TELEPHONE NUMBER
24. BRIEF DESCRIPTION OF PROJECT AND RELEVANCE TO THIS CONTRACT <i>(Include scope, size, and cost)</i>		

25. FIRMS FROM SECTION C INVOLVED WITH THIS PROJECT

a.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE
b.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE
c.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE
d.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE
e.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE
f.	(1) FIRM NAME	(2) FIRM LOCATION <i>(City and State)</i>	(3) ROLE

[illegible]

NUMBER	TITLE OF EXAMPLE PROJECT <i>(From Section F)</i>	NUMBER	TITLE OF EXAMPLE PROJECT <i>(From Section F)</i>
1		6	
2		7	
3		8	
4		9	
5		10	

H. ADDITIONAL INFORMATION

30. PROVIDE ANY ADDITIONAL INFORMATION REQUESTED BY THE AGENCY. ATTACH ADDITIONAL SHEETS AS NEEDED.

I. AUTHORIZED REPRESENTATIVE
The foregoing is a statement of facts.

31. SIGNATURE

32. DATE

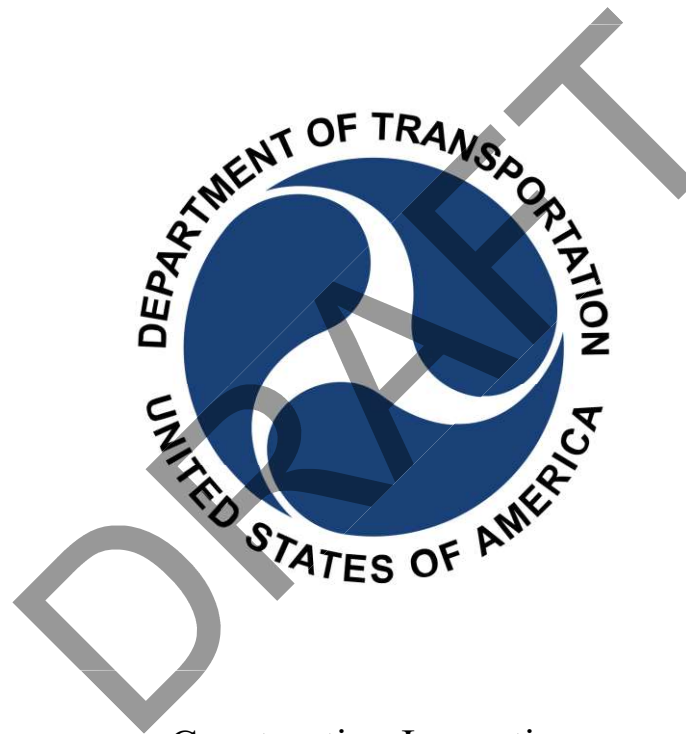
33. NAME AND TITLE

ATTACHMENT C – DRAFT RFP

REQUEST FOR PROPOSAL

Solicitation No. 6982AF25R000016

Department of Transportation
Federal Highway Administration
Central Federal Lands Highway Division



Construction Inspection
Indefinite-Delivery, Indefinite-Quantity Contract

CONTRACTOR NAME

Address

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Section A

ARCHITECT-ENGINEER CONTRACT	1. CONTRACT NO. 6982AF26D0000XX
	2. DATE OF CONTRACT XX-XXX-XXXX
3A. NAME OF ARCHITECT-ENGINEER Contractor Name	3B. TELEPHONE NO (Include Area Code) XXX-XXX-XXXX
3C. ADDRESS OF ARCHITECT-ENGINEER (Include Zip Code) Address	
UEI No: (Please Provide)	
4. DEPARTMENT OR AGENCY AND ADDRESS (Include Zip Code) Federal Highway Administration Central Federal Lands Highway Division (CFLHD) 12300 West Dakota Avenue, Suite 360 Lakewood, Colorado 80228	
5. PROJECT TITLE AND LOCATION Indefinite Delivery-Indefinite Quantity contract for Construction Inspection Services. The geographic jurisdiction of CFLHD includes, but is not limited to, Arizona, California, Colorado, Hawaii, Kansas, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, Utah, and Wyoming.	
6. CONTRACT FOR (General description of services to be provided) Provide full-service Architect-Engineer Services for CFLHD, as further described under Section C, Article II. Services consist of a five-year period of performance from date of award.	
7. CONTRACT AMOUNT (Express in words and figures) Indefinite Delivery – Indefinite Quantity Contract Minimum Contract Obligation – \$10,000 per each individual contract Maximum Contract Obligation – \$100,000,000 (One Hundred Million Dollars) shared maximum contract value	
8. NEGOTIATION AUTHORITY DELETED PENDING ISSUANCE OF NEW FORM	
9. ADMINISTRATIVE, APPROPRIATION, AND ACCOUNTING DATA See Individual Task Orders (TOs)	

Section A

The United States of America (called the Government) represented by the Contracting Officer executing this contract, and the Architect-Engineer agree to perform this contract in strict accordance with the clauses and the documents identified as follows, all of which are made a part of this contract.

PART I - SCHEDULE

SECTION A - CONTRACT STANDARD FORM 252, ARCHITECT-ENGINEER CONTRACT

SECTION B - SUPPLIES OR SERVICES AND PRICES

SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

SECTION D - PACKAGING AND MARKING

SECTION E - INSPECTION AND ACCEPTANCE

SECTION F - DELIVERIES OR PERFORMANCE

SECTION G - CONTRACT ADMINISTRATION DATA

SECTION H - SPECIAL CONTRACT REQUIREMENTS

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J - LIST OF ATTACHMENTS

ATTACHMENTS

If the parties to this contract are comprised of more than one legal entity, each entity shall be jointly and severally liable under this contract.
The parties hereto have executed this contract as of the date recorded in item 2.

SIGNATURES	NAMES AND TITLES (Typed)
11. ARCHITECT-ENGINEER OR OTHER PROFESSIONAL SERVICES CONTRACTOR	
A	
B	
C	
D	
12. THE UNITED STATES OF AMERICA	
	Ryan Phillips CONTRACTING OFFICER

STANDARD FORM 252 BACK (REV. 10-83)

End of Section A

SECTION B - SUPPLIES OR SERVICES AND PRICES

B.1 DESCRIPTIONS OF PERSONNEL CLASSIFICATIONS

B.1.1. Contracting Officer's Technical Advisor (COTA)

B.1.2. COTA Duties

- (a) Technical Advisor: Function as the Government's advisor for contract compliance; manage the project inspection team and delegate assignments; and supervise Firm's employees. Performs CI-II duties as needed.
- (b) Construction Oversight & Quality Assurance: Ensure construction contractor adheres to plans and specifications through regular inspection; verify contractor surveying, staking, sampling, and testing methods; and document progress or issues using photography, videography, and daily project diaries.
- (c) Schedule & Risk Management: Review critical path and bar chart schedules for compliance with construction contract and reasonableness; anticipate and mitigate delays; and perform Critical Path Method (CPM) analyses to evaluate time impacts.
- (d) Submittal & Document Control: Process and review shop drawings and submittals for contract compliance within required timeframes; maintain tracking systems for submissions; perform quality control on construction documents; document work of contractor and subcontractors; and ensure all records are filed in accordance with CFLHD records maintenance processes.
- (e) Financial & Estimate Management: Review measurement notes, generate receiving reports, and maintain pay item totals and final quantities to monitor budget; verify contractor invoices (Progress Estimates) and semi-final/final pay note quantities; and utilize specialized software like QL-Pay for statistical analysis in accordance with established CFLHD processes.
- (f) Contract Modifications & Negotiations: Identify and develop scopes of work; assist CFLHD with preparation of independent cost estimates; and review technical analyses of contractor proposals to support the CFLHD during negotiations.
- (g) Labor Compliance & Safety Enforcement: Verify job site postings are maintained; and monitor safety compliance, including reviewing Accident Prevention Plans and reporting unsafe activities in the field.
- (h) Project Communications & Facilitation: Organize and facilitate progress meetings and partnering sessions; prepare meeting minutes; manage project visitors as requested and assist Government personnel with inquiries from the public.

- (i) Project Closeout & Final Acceptance: Prepare and monitor punch lists for corrective actions; coordinate and lead detailed final inspections; and manage all closeout requirements, including responses to quality assurance findings.

B.1.2. COTA Qualifications

- (a) Education, Certification, and Professional Experience: Three (3) years of experience in the on-site project management and administration of highway/bridge construction projects, in roles such as a Project Engineer, Project Manager, Construction Manager, or equivalent positions AND one of the following:
- Licensed Professional Engineer;
 - Registered Engineer in Training;
 - Bachelor of Science in Civil Engineering, Construction Management, or related field;
 - Associate of Science degree in Engineering Technology or a related field.

OR

Ten (10) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, project administration roles, or equivalent positions.

- (b) Communication and advisory Leadership: Ability to function as the Government's technical advisor, enforcing contract compliance within delegated authorities while monitoring, documenting, and advising on contract status. Demonstrate excellent verbal and written communication, effective listening skills, and the ability to manage construction teams and supervise inspectors.
- (c) Technical Proficiency and Contract Administration: Proficient in interpreting transportation construction contracts, specifications, and plans; managing costs (overruns/underruns); analyzing CPM/bar chart schedules; and reviewing progress payments for accuracy. Direct understanding of safety/labor laws, QC/QA principles, MUTCD, AASHTO, ASTM, ADA, and ABA standards, as well as experience with environmental mitigation oversight (wetlands, endangered species, hazardous materials, etc.).
- (d) Field Operations and Software Proficiency: Experience obtaining field measurements and documenting project progress using photography, videography, and specialized reporting. Proficient with computer software programs such as Microsoft Office, Primavera P6, and Google Workspace.

B.1.4. On-Site Construction Inspector (CI-II)

B.1.5. CI-II Duties

- (a) Technical Support: Support the COTA or Project Engineer in contract administration, including filling in as the COTA for up to 14 calendar days when necessary. Provide inspection support services and technical field support to lower-level inspectors in accordance with the Contract Inspector's Handbook and established Federal Lands Highway (FLH) manuals. Inspect contractor work, drawings, and specifications to verify conformity with all construction contract requirements.
- (b) Construction Inspection: Inspect all construction contract items (Earthwork, Pavements, Bridge, etc.) to ensure workmanship, materials, and equipment meet contract plans and specifications. Monitor operations for adherence to approved Traffic Control Plans (MUTCD), environmental permits (SWPPP), erosion control, and QC/QA plans. Verify contractor survey work and measure/record quantities; perform mathematical computations to check the accuracy of contractor measurement notes and progress estimates. Immediately notify the COTA/PE of non-compliance; document and recommend corrections for non-complying work, safety/health deficiencies, or required field adjustments and technical solutions. Provide knowledge transfer to Government staff, assist in onboarding new Government inspectors, and provide on-the-job support regarding project processes.
- (c) Materials Inspection and Testing: Witness materials sampling (e.g., soil density, concrete slump/air) and assist with preparing samples and transmittal forms for laboratory shipment. Verify that on-site testing equipment is calibrated and evaluate the construction contractor's testing system against project statistical acceptance criteria.
- (d) Project Records and Reporting: Maintain detailed contract documentation via Government systems, including clear Daily Inspection Reports (IDRs) and chronological pictorial records (photos/video). Review contractor as-built drawings for accuracy and provide technical input for routine and complex submittals, such as shop drawings and CPM schedules to support the Government's compliance determinations.

B.1.5. CI-II Qualifications

- (a) Education, Certification, and Professional Experience: Five (5) years of on-site inspection of highway or bridge construction projects and one of the following:
 - Licensed Professional Engineer (PE);
 - Registered Engineer in Training (EIT);
 - Bachelor of Science in Civil Engineering, Construction Management, or a related field;
 - Associate of Science in Civil Engineering Technology or a related field.

OR

Seven (7) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, or equivalent positions.

- (b) Technical Skills and Knowledge: Expertise in inspecting highway and bridge work items including: General Requirements (Survey, QC, Traffic), Earthwork (Blasting, Geosynthetics), Retaining Systems (MSE Walls, Soldier Piles, Rockfall Protection), Aggregate Bases, Asphalt/Rigid Pavements, Bridge Construction (Piles, Shafts, Structural Steel/Concrete), Incidental Construction (Drainage, Utilities, Guardrail), and Erosion/Traffic Control. Proficient in interpreting transportation infrastructure contracts, plans, and specifications; direct knowledge of MUTCD, AASHTO (Geometric Design and Materials), ADA/ABA Standards, and ASTM standards. Deep understanding of QC/QA principles, sampling/testing procedures, and methods of acceptance—including statistical analysis of highway materials. Skilled in maintaining accurate project records (IDRs), checking contractor survey/staking, and performing complex mathematical engineering computations for measurement verification. Ability to monitor and document contractor compliance regarding safety and labor laws, environmental permits (SWPPP), and traffic control plans. Proficient with productivity software such as Microsoft Office, Primavera P6, and Google Workspace.

B.1.6. On-Site Construction Inspector (CI-I)

B.1.7. CI-I Duties

- (a) Contract Compliance: Provide inspection services according to the Contract Inspector's Handbook and FLH manuals to verify contractor work conforms to all contract drawings and specifications.
- (b) Construction Inspection: Monitor basic contract items (e.g. earthwork, drainage, paving) to ensure workmanship, materials, and equipment meet contract requirements. Observe contractor operations for compliance with approved traffic control (MUTCD), permits, and QC/QA plans. Measure and record field work, performing mathematical computations to verify the accuracy and completeness of contractor measurement notes and progress estimates. Immediately notify the COTA/PE of non-compliance, safety/health deficiencies, or plan errors; document and recommend corrective actions for technical review.
- (c) Materials Inspection and Testing: Witness materials sampling (soil density, concrete slump/air) and assist with the preparation and shipment of samples to designated labs, including all transmittal documentation. Ensure all on-site testing equipment is properly calibrated and maintained in good working order.
- (d) Project Records and Reporting: Maintain detailed project documentation via Government systems, including clear Daily Inspection Reports (IDRs) detailing labor and equipment usage. Manage a chronological record of progress through labeled photos and video; assist in the review of routine contractor submittals and project record maintenance.

B.1.8. CI-I Qualifications

- (a) Education, Certification, and Professional Experience: Licensed Professional Engineer; Engineer in Training; hold a Bachelor of Science in Civil Engineering, Construction Management, or related field; hold an Associate of Science in Engineering Technology or related field.

OR

Three (3) years of experience in the on-site inspection or administration of highway/bridge construction projects, including construction inspection, material testing, quality control, or equivalent positions.

- (b) Technical Skills and Knowledge: Expertise in inspecting highway and bridge work, including: General Requirements (Sampling/Testing), Earthwork (Excavation, Blasting, Geosynthetics), Retaining Systems (Riprap, Gabions), Aggregate Bases, Asphalt Pavements/Treatments, Bridge Construction (Structural Concrete/Repair), Incidental Construction (Drainage, Guardrail, Fencing), and Erosion/Traffic Control. Proficient in interpreting transportation construction contracts, specifications, and plans to ensure field compliance. Skilled in maintaining accurate project records and IDRs, as well as performing the mathematical engineering computations required for measurement checks. Ability to execute sampling and testing procedures and monitor contractor operations for compliance with environmental permits (Erosion Control) and Traffic Control plans. Proficient with productivity software such as Microsoft Office, Primavera P6, and Google Workspace.

B.1.9. Other Classifications (OC)

B.1.10. OC Duties

- (a) Perform specialized tasks within the transportation field as defined and negotiated based on specific project needs and identified requirements.

B.1.11. OC Qualifications

- (b) Education, certification, and experience requirements will be established on a case-by-case basis according to individual Task Order specifications.

Section B

B.2. HOURLY RATES Contractor Fixed-Price Contracts

A/E Work Classifications	Calendar Year 2026 Hourly Rate	Calendar Year 2027 Hourly Rate	Calendar Year 2028 Hourly Rate	Calendar Year 2029 Hourly Rate	Calendar Year 2030 Hourly Rate to Contract Completion (End of Final T.O.)
Contracting Officer Technical Adviser	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
On-Site Construction Inspector CI-I	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
On-Site Construction Inspector CI-II	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____
	\$ _____	\$ _____	\$ _____	\$ _____	\$ _____

(PRIME AND ALL SUBS MUST USE THIS FORM)

For each personnel classification, provide the hourly rate for each year/period using the above table. Enter the fully burdened hourly rate (including all overhead expenses and profit) in the highlighted cells and the unburdened hourly rate (labor rate before any indirect costs, fees, or markups are added) in the white cells.

See Part II, Section I, Contract Clauses, 52.216-18, Ordering, for dates.

B.3. OTHER DIRECT COSTS

Other Direct Costs such as equipment, vehicle rental, and supply costs will be negotiated for each Task Order.

B.4. PER DIEM

The Contractor shall be reimbursed for travel-related expenses on a per diem basis when travel is authorized under this contract. Per diem consists of lodging and meals and incidental expenses (M&IE).

Per diem reimbursement shall not exceed seventy-five percent (75%) the Federal Travel Regulation (FTR) per diem rates published by the U.S. General Services Administration (GSA) for the locality in which travel occurs. The applicable rate is the rate in effect on the date of travel. Lodging costs shall be reimbursed based on actual expenses incurred, up to the maximum lodging rate for the travel location. Lodging taxes and mandatory fees are reimbursable as a separate, actual expense and are not included in the lodging per diem cap. When meals are provided at no cost to the traveler (e.g., conference meals, employer-provided meals), the Contractor shall deduct the applicable meal amount from the daily M&IE rate in accordance with FTR guidelines.

Authorized per diem shall begin accruing on the calendar day the Contractor first reports to and is physically present at the project site.

B.5. MOBILIZATION FEE

The Contractor shall be paid a firm-fixed fee of \$[insert amount] per person for mobilization activities required to initiate performance under this Contract. Mobilization includes all labor, administrative preparation, travel, and other start-up actions necessary to achieve full readiness to perform inspection services. All travel-related costs, including mileage, fuel, and vehicle use, are deemed included in the mobilization fee and shall not be invoiced or reimbursed separately.

Contractor shall be paid the mobilization fee upon demobilization at the conclusion of the contract or upon a Government-directed cessation of work that requires the Contractor to remove personnel from the site. If the Government suspends work for a period exceeding fourteen (14) consecutive days, the Contractor shall demobilize unless otherwise directed.

B.6. SUBCONSULTANT HANDLING FEE

A markup will be applied by the Prime A-E Firm to each subconsultant invoice to cover all costs associated with all aspects of the selection, procurement, administration, and closeout of each subconsultant contract. This markup also includes all costs associated with quality assurance/quality control of each subconsultant's work.

The markup applied varies depending on the amount of work performed by each subconsultant as follows:

Subconsultant work Under \$X*	X % Markup
Subconsultant work Over \$X*	X % Markup

* Subconsultant work amount includes fully burdened labor and direct costs. The cost threshold is applied on the original Task Order (TO) amount and separately on each subsequent individual TO modification or work order request.

B.7. OVERHEAD COSTS

A-E Firm must provide most current independent audit including the Auditor's findings and a complete breakout of all overhead costs.

- (a) The Offeror shall identify, classify, and allocate indirect costs in accordance with FAR Part 31, including but not limited to FAR 31.201-2 (Allowability), FAR 31.201-4 (Allocability), and FAR 31.203 (Indirect Costs). Indirect costs must be applied consistently across all contracts and cost objectives.
- (b) For purposes of this Contract, "overhead" refers to indirect costs that support multiple contracts or cost objectives and cannot be directly attributed to a single contract. Overhead typically includes, but is not limited to:
 - Supervisory and support labor
 - Facilities and utilities supporting contract performance
 - Shared tools, equipment, and supplies
 - Company-owned or leased vehicles used across multiple projects
 - IT systems, communications, and administrative support functions

Section B

- (c) Costs associated with company-owned vehicles (e.g., depreciation, fuel, maintenance, insurance, registration) that support more than one contract or task order shall be treated as indirect costs and included in the A-E Firm's overhead pool. Mileage reimbursement for company-owned vehicles is not allowable as a direct charge when such costs are already recovered through indirect rates.
- (d) Costs for leased vehicles shall be treated as follows:
 - 1. If a leased vehicle is used on multiple contracts, task orders, or cost objectives—including multiple task orders under a single IDIQ contract—the lease cost and associated operating expenses shall be classified as indirect costs in accordance with FAR 31.203 and FAR 31.205-36 (Rental Costs).
 - 2. A leased vehicle may be charged as a direct cost only when the vehicle is leased exclusively for a single contract, used 100 percent for that contract, and the A-E Firm's accounting practices consistently treat such dedicated leased equipment as direct costs. Mileage reimbursement is not allowable unless the lease itself is mileage-based.
- (e) Labor costs for contract administrators, project support staff, and all other administrative personnel whose duties support multiple contracts or task orders shall be treated solely as indirect costs and included in the A-E Firm's overhead or General & Administrative pools in accordance with FAR 31.203. These personnel shall not be charged directly to this contract under any circumstances, regardless of the nature or duration of the support provided.
- (f) The A-E Firm shall apply its direct/indirect cost-charging practices consistently across all federal and commercial work. Any deviation from established accounting practices must be disclosed and justified in the proposal.
- (g) The Government may request supporting documentation to verify the A-E Firm's indirect cost structure, allocation bases, and treatment of shared resources, including vehicles. Failure to provide adequate documentation may result in rejection of the proposal.

End of Section B

SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

ARTICLE I – DEFINITIONS

Architect-Engineer Services (A-E) - Includes professional services of an architectural or engineering nature performed or approved by a person licensed, registered, or certified to provide those services that are associated with research, planning, development, design, construction, alteration, or repair of real property, or incidental services, that members of the architectural and engineering professions (and individuals in their employ) may logically or justifiably perform, including studies, investigations, surveying and mapping, tests, evaluations, consultations, comprehensive planning, program management, conceptual designs, plans and specifications, value engineering, construction phase services, soils engineering, drawing reviews, preparation of operating and maintenance manuals, and other related services.

Central Federal Lands Highway Division (“CFLHD”) – Division of the Federal Lands Highway Office of the Federal Highway Administration.

Contract – Mutually binding legal relationship obligating the seller to furnish the supplies or services and the buyer to pay for them. It includes all types of commitments that obligate the Government to an expenditure of appropriated funds and that, except as otherwise authorized, are in writing.

Contractor - Contractor means the architect-engineer firm that is party to this Contract.

Contracting Officer (“CO”) - Government official vested with the authority to enter into, administer, and/or terminate contracts. The CO must approve any changes to the terms or conditions of the contract.

Contracting Officer’s Representative (“COR”) - CFLHD Representative with authority to administer the contract and to give the Contractor technical guidance.

Construction Inspection Services (“CIS”) - are professional services performed to observe, document, and verify that construction work complies with the contract plans, specifications, applicable standards, and approved procedures. These services typically include on-site inspection of materials, workmanship, and construction activities; monitoring contractor progress; documenting daily work; identifying non-conforming work; coordinating with project management staff; and providing reports or recommendations to the Government’s designated representative. CIS may also include participation in meetings, review of submittals related to inspection activities, and support in resolving field issues.

Deliverables - Reports, documents, plans, maps, and other items described in the Statement of Work or individual Task Order.

Errors - Design features or details that are incorrect, conflicting, insufficient, or ambiguous.

Federal Acquisition Regulation (“FAR”) – Regulation established for the codification and publication of uniform policies and procedures for acquisition by all executive agencies.
(<http://www.acquisition.gov/far/>).

Federal Highway Administration (“FHWA”) – Operating Administration of the United States Department of Transportation.

Government - The Federal Highway Administration of the United States Department of Transportation.

Indefinite Delivery-Indefinite Quantity (“IDIQ”) - Contract as defined in FAR Subpart 16.5.

Omissions – Instances in which design documents are silent on an issue that should otherwise have been addressed.

PS&E – Plans, Specifications and Estimates.

Quality Assurance (“QA”) - Method used by the Government to provide some measure of control over the quality of purchased goods and services received.

Quality Control (“QC”) - Method used by the Contractor to control the quality of goods and services produced.

Statement of Work or Scope of Work in a Task Order (“SOW”) - Part of the contract document containing a detailed description of the work, outline of the required services, responsibilities of the parties, agreed compensation, completion dates, and other information necessary to complete the contract.

Task Order (“TO”) - A written order by the CO authorizing the Contractor to provide specified services.

Transportation Acquisition Regulation (“TAR”) – Establishes uniform acquisition policies and procedures, which implement and supplement the FAR. (<https://www.acquisition.gov/tar>).

End of Definitions

ARTICLE II - STATEMENT OF WORK

A. INTRODUCTION

This IDIQ Contract is to provide CIS for road and bridge projects administered by CFLHD. CIS will be initiated by the issuance of task orders in accordance with the terms of the IDIQ contract. The Contractor will perform the duties described herein and in the scope of work (SOW) incorporated into each TO, within the terms and limitations of this Contract. The IDIQ contract will operate in accordance with Federal Acquisition Regulation (FAR) Subpart 16.5. *CFLHD may authorize the use of this contract by other FHWA offices on a case-by-case basis.*

The Contract will consist of a period of performance of five years. The total amount of CIS shall not exceed \$100,000,000 shared capacity of all Contracts issued under the solicitation during the life of the Contract. (*See FAR Clause 52.216-18, Ordering, and FAR Clause 52.216-19, Order Limitations.*)

B. PURPOSE

The primary purpose for acquiring these services is to provide a full range of Construction Inspection Services (CIS), including but not limited to, the specific requirements outlined for CFLHD projects. Performance shall be associated with Federally funded transportation projects, primarily supported through the Federal Lands Transportation Program (FLTP) and Federal Lands Access Program (FLAP) as established by the Infrastructure Investment and Jobs Act (IIJA), as well as any subsequent Authorization Acts or related funding programs.

C. PROJECT LOCATIONS

The predominant geographic area includes but is not limited to, Arizona, California, Colorado, Hawaii, Kansas, Nebraska, Nevada, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, Utah, and Wyoming. Services may be required at additional locations within the domestic United States. Work

locations are generally situated within or adjacent to National Forests or either public lands or on public route corridors with abutting private land, in National Parks, in National Wildlife Refuges, on Tribal Lands, or on or near other Federal or public properties. Projects are frequently located in remote locations characterized by steep terrain and also on low-traffic volume roadways.

D. CONTRACT WORK TO BE PERFORMED

- (1) Types of work: The SOW to be performed on each task of project, including deliverable items, will be detailed in each TO. Work is principally for CIS needed in support of the construction of highway, bridge and other associated transportation facilities. The types of work may include, but are not limited to:

(a) On-Site Inspection: Monitor daily construction activities to verify compliance with approved plans, specifications, and safety standards.

(b) Contract Administration Support: Assist with documentation, progress tracking, and coordination between contractors, engineers, and project stakeholders.

(c) Materials Testing Oversight: Observe and report on field and laboratory testing of construction materials to ensure quality and performance standards are met.

(d) Documentation and Reporting: Maintain detailed inspection logs, prepare daily reports, and support the development of project records for audits and closeout.

(e) Environmental and Safety Compliance: Ensure adherence to environmental protection measures and occupational safety requirements throughout the construction process.

(f) Change Order and Claims Support: Provide technical input and documentation to support the evaluation of contract modifications and claims.

(g) Coordination and Communication: Facilitate effective communication among project teams, including federal, state, and local agencies, contractors, and consultants.

The work is performed by experienced personnel who are assigned to project sites for several months, based on the complexity and schedule of each project. Inspectors are required to possess a thorough understanding of federal highway construction standards and procedures, particularly those established by the Federal Highway Administration (FHWA), including the [*Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects*](#) (e.g., FP-14 or FP-24).

- (2) TO issuance: Task Orders may be issued for a portion of the project, the complete project, or a series of projects. Some project development activities may be accomplished by CFLHD, by other Government agencies, or by other consulting Contractors.

- (3) Specifications and Standards: Specifications and standards shall be as specified herein and as supplemented in the TO. Generally, National Park Service Park Road Standards shall be used for highway and bridge design on Park Roads and AASHTO or state and local standards for other roads. Specific standards will be furnished for each assigned task. Computer files shall be compatible with CFLHD specifications indicated in Section J.

- (4) Government-Provided Data:

- (a) Federal Lands Highway Project Development and Design Manual.
 - (b) Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects, FP-14, FP-24, or appropriate replacement thereof; and
 - (c) National Park Service Park Road Standards
- (5) Accuracy of Data: Consistent with the professional standard of care, the Contractor shall be entitled to rely upon the accuracy of data and information provided by the CO or others without independent review or evaluation, unless specifically required in the SOW.

E. PERSONNEL

- (1) The Contractor, not the Government, shall control, manage, and supervise the day-to-day activities and performance of its employees and subconsultants while performing the services required by the contract. CFLHD reserves the right to have an individual removed from the work if performance is determined by CFLHD to be unsatisfactory. Services to be delivered under this contract by the Contractor to the Government are non-personal as defined by RFO Part 37.001.
- (2) All changes to assigned personnel require prior written approval from the CO.
 - a) The Contractor shall add or remove personnel within seven (7) calendar days of receiving written notice from the Contracting Officer.
 - b) If the CO requests the addition of personnel, the Government shall pay the mobilization fee for each additional CI. If the CO requests the substitution or removal of personnel, the Contractor shall be responsible for all associated travel costs required to return or reassign the personnel.
- (3) If additional Work Classifications are identified to perform work on the contract or TO, the quantity of hours for these individuals, including subcontractors, will be negotiated and added by modification to the contract or individual TO.
- (4) Assignment durations may vary by project. If a project's construction period extends beyond the period of performance of this contract, the Government may, at its discretion, extend personnel assignments for the duration of that project.

The Contractor shall coordinate with the COR in any instance where overtime may occur to ensure such work does not result in a budget overrun. While the Contractor is responsible for independently determining staffing levels and personnel assignments to meet project milestones, the Government's role in this coordination is to define required outcomes and confirm the availability of remaining funds within the Task Order. The Contractor must provide the Government with at least twenty-four (24) hours' notice of any anticipated overtime. Overtime shall not be performed until the Government verifies in writing that the projected hours remain within the authorized amount of the Task Order.

F. PROGRAM MANAGEMENT AND CONTROL REQUIREMENTS

- (1) Quality Control: The Contractor is expected to perform in a professional manner and all work shall be neat, well organized, and fully comply with the requirements of this contract and the respective TO. All reports, newsletters, correspondence, and written documents required in each TO will be neat, professional in appearance, and comply with The Gregg Reference Manual, current edition (available commercially). CFLHD will reject any data submitted that does not comply with the

above.

- (2) Pricing Arrangements: It is anticipated that all TOs will be firm fixed-price.
- (3) Subcontractor Approval: If the Contractor proposes to enter into any subcontract with a subconsultant not included on this Contract, the Contractor must provide the CO with resumes, labor category classifications, descriptions and rates. All of the above must be approved by the CO prior to performance of work.

G. HOURLY RATES

The hourly rates shown in Section B shall be in effect during the performance period specified. Escalated rates will become effective on the first day of each calendar year.

- (1) If it is anticipated that a portion of the TO will be performed during the next calendar year, the hourly rates for that calendar year shall be used for work estimated to be performed during that calendar year.
- (2) Profit rates shall be fixed for the life of the contract.

H. ISSUANCE OF THE TASK ORDER

- (1) Standard Task Orders: The Government will normally initiate a TO by issuing a written request for proposal with the following information:
 - a) General information including an introduction, project summary, and general project scope;
 - b) Work required;
 - c) FHWA-furnished property/data;
 - d) Deliverables and schedule;
 - e) Work performance specifications, quality standards and reporting requirements;
 - f) Period of performance;
 - g) Coordination requirements/name of Government COR and Cross Functional Team; and
 - h) Payment information.

In some instances, the Government may prepare an outline of work to be performed and request the Contractor to prepare a draft SOW. Upon the concurrence of the Government and the Contractor regarding the draft SOW, a request for proposal may be issued to the Contractor.

Within **ten (10) calendar days** (unless otherwise specified) of receiving the request for proposal, the Contractor shall submit the following:

- 1) Names of the proposed personnel responsible for work and performance of major tasks, including subcontractor personnel and rates. If requested, resumes must be provided;
- 2) Name of the person who will be the liaison for the Contractor assigned to the TO. This person will

be the COR's primary point of contact with the Contractor for all matters concerning the TO;

- 3) Proposed schedule of work if one is not in the TO or if the Contractor is proposing a different schedule;
- 4) A fee proposal based upon the fully burdened labor rates, and all other direct costs. The proposal will show work hours, contract rates, and total burdened labor costs for each personnel classification. Total per diem costs will be itemized by days and be based upon the contract rates. Any other direct costs not included in overhead should be listed and justified. Also, include all taxes;
- 5) Discussion of any item in the scope of work not fully understood;
- 6) Discussion of any assumptions made in providing the proposed fee.

Upon receipt of the Contractor's proposal, the Government will schedule negotiations with the Contractor to finalize the scope of work, review and approve the proposed personnel, establish the price of the TO, and schedule the work. The Government will not pay for costs associated with the preparation of TO proposals or modifications to the proposal. **The CO has the sole authority to bind the Government through issuance of a TO. Any work performed prior to issuance of a TO, by the CO, is an unauthorized commitment, for which the Contractor may not be compensated.**

ARTICLE III - REPORTING REQUIREMENTS

- A. Financial: The Contractor shall submit invoices in accordance with Article V. **The Contractor shall submit separate invoices for each TO. Invoice charges shall be distributed in accordance with line items (accounts) listed on the TO Optional Form 347 (if applicable).**
- B. Progress Reports: Unless otherwise instructed by the COR, a progress report shall be prepared and submitted with each invoice requesting a payment. Progress reports shall be an accurate and detailed accounting of the work accomplished to date and submitted on forms approved by the government. The progress report shall also discuss any problems the Contractor has had since the previous report and any problems it foresees. Delays and failures in furnishing progress reports will be handled in accordance with FAR clause 52.242.2, Production Progress Reports. Changes in personnel shall be documented in the report.
- C. Subcontracting: As required by FAR clauses:
 - 52.219-9, Small Business Subcontracting Plan (if applicable).
 - 52.204-10, Reporting of Executive Compensation and First-Tier Subcontract Awards
 - 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts

ARTICLE IV - PERIOD OF PERFORMANCE

This Contract is effective on the date shown in block 2 of SF 252, Architect - Engineer Contract. The period of performance for individual TOs will be established during the TO negotiations. Unless the contract is terminated or changed in accordance with applicable FAR clauses, the Contractor shall complete all work required under the Statement of Work in Section C, Article II, and the Scope of Work issued with each TO.

ARTICLE V - CONSIDERATION AND PAYMENT

- A. Compensation: The Government will pay the Contractor for the full performance required under the terms of the negotiated TO. For firm fixed-price TOs and Work Orders, the negotiated fee is considered

full compensation for the services required including all profit and other costs incurred such as overhead, administration, per diem, miscellaneous expenses to complete the work of the task order. Total compensation paid to the firm cannot exceed the authorized ceiling amount for the work order task order.

B. Schedule of Fees: The following cost items are incorporated as part of the IDIQ contract and will apply to all TOs.

- (1) Basic hourly rates, overhead, and profit rates as shown in Section B of the Contract.
- (2) For each firm fixed-price Task Order or Work Order, the price shall be the sum of all of the following:
 - (a) Labor costs – The negotiated TO hours multiplied by the respective hourly rates burdened by the established overhead rate and the established profit rate.
 - (b) Equipment costs – as negotiated.
 - (c) Vehicle rental – Monthly vehicle rates will be negotiated on a Task Order basis. The Contractor shall be responsible for furnishing an appropriate type of vehicle necessary to complete the work.
 - (d) Other direct project costs – as negotiated.
 - (e) Subconsultant and subcontractor costs.
 - (f) Per Diem costs shall consist of seventy-five percent (75%) of the current established Federal travel rates and will include, per diem to and from the project site, and applicable per diem while working on the project. <http://www.gsa.gov/portal/content/104877>

If the Contractor is unable to obtain long-term lodging or meals and incidental expenses (M&IE) at the rates established in this Contract, the Contractor may request an overage rate for the worksite to be negotiated with the Contracting Officer. Any requested overage rates must receive approval prior to travel and shall not exceed the applicable CONUS rate for the assigned project. "CONUS" means the forty-eight (48) contiguous states of the United States and the District of Columbia. No separate reimbursement for mileage, local travel, or commuting-related expenses shall be provided unless expressly authorized in the Task Order.

C. Progress Payments: Progress payments will be made on request by the Contractor in accordance with the following provisions:

- (1) The Government will make progress payments to the Contractor in accordance with FAR Clauses 52.232-10, 52.232-25, and 52.232-26.
- (2) The Contractor may request partial payment, provided that no successive requests for partial payment are submitted within 28 days of each other. A progress report and a proper invoice (see FAR Clause 52.232-25(a)(3) or 52.232-26(a)(2)) shall be submitted with each request for partial payment.
- (3) Upon approval of the submittal by the CO, payment of properly executed vouchers shall be made in accordance with the FAR.

D. Final Payment: Final payment under the IDIQ will be made as follows:

- (1) Upon satisfactory completion of the subject TO by the Contractor, submission of a proper invoice (see FAR Clause 52.232-25(a)(3) or 52.232-26(a)(2)), and acceptance by the CO or designated official of the work described in the Scope of Work, the Contractor will be paid the unpaid balance of any money due for work under the IDIQ, including retained percentages.
- (2) Before final payment, or before settlement upon termination of the IDIQ or any TO, and as a condition precedent thereto, the Contractor shall execute and deliver to the CO a **release of all claims (DOT Form 4220.4)** against the Government arising under or by virtue of this contract, other than any claims that are specifically exempted by the Contractor from the operation of the release, in amounts stated in the release.

ARTICLE VI - PROFESSIONAL STAFFING

The Contractor shall assign the personnel as agreed to during the TO negotiations. All phases of the work required by the TO shall be performed by professionally qualified personnel acceptable to the CO. Substitution of personnel during the performance of a TO will be discouraged, but if necessary, the CO shall be notified within seven (7) working days of the substitution and will retain approval authority for those changes before performance of work. However, this requirement shall not restrict the exercise of the at-will employment rights of the Contractor and its employees. *See Also Transportation Acquisition Regulation (TAR) Clause 1252.237-73, Key Personnel (Apr 2005).*

ARTICLE VII - DIRECTION

No oral statement of any person whatsoever, including the COR, and no written statement of any person other than the CO, shall modify or otherwise alter the terms or meaning of this contract.

The Contracting officer is the only person who has the authority to modify or otherwise affect the terms or conditions of this contract. In accordance with TAR clause 1252.242-73, Contracting Officers Technical Representative (COR), contract and task order CORs will be delegated functions such as review, inspection and other functions of a technical nature.

The CO's designated COR shall be responsible for providing technical guidance to the Contractor for all or a specified portion of each TO. In the event the Contractor effects any change to the contract at the direction of any person other than the CO, the change is considered to be made without authority and no adjustment will be made in the contract price to accommodate any increase as a result thereof.

ARTICLE VIII - INSPECTION, DELIVERY, AND ACCEPTANCE

The work called for here, as well as the Contractor's books, records, and place of business, shall be subject to inspection by the CO or duly authorized representative during normal working hours. Delivery shall be made to the following address:

Contracting Officer's Representative (Name)
Federal Highway Administration
Central Federal Lands Highway Division
12300 West Dakota Avenue
Lakewood, Colorado 80228

The Government designates the above location as the place for final acceptance. Other detailed delivery terms and conditions will be specified in each TO as needed. Satisfactory completion of all elements of work shall be indicated by acceptance in writing of such work by the CO or by payment of final invoice.

Submission and receipt of deliverable items does not constitute satisfactory acceptance of such work.

ARTICLE IX - RIGHTS IN DATA--PUBLICATION

All rights in data, including publication rights developed by the Contractor in the performance of this contract, shall vest in the Government. The Contractor shall notify the CO of all requests, or demands, including subpoenas, for the data. Except pursuant to the order of a court of competent jurisdiction, the Contractor shall not publish, or cause to be published, any such data without written permission of the CO.

ARTICLE X - COOPERATION WITH OTHER GOVERNMENT AGENCIES AND CONTRACTORS

Formal communication between the Contractor and personnel of other Governmental agencies or other contractors of the Government shall be conducted through the COR. On a case-by-case basis, the COR may direct the Contractor to work directly with personnel of other contractors or Government agencies.

ARTICLE XI - INDEMNIFICATION AND INSURANCE

The Contractor shall protect, defend, indemnify, save, and hold harmless the United States Government and its employees or agents, from and against all claims, demands, expenses, causes of action, judgments and liability arising out of or arising out of any fault, negligence, or wrongful acts or omissions of the Contractor, its agents, subcontractors, employees, assignees, or anyone for whom the Contractor may be responsible. The Contractor shall also be liable for all costs, expenses and attorney's fees incurred as a result of any such claim, demand, cause of action, judgment or liability, including those costs, expenses, and attorneys' fees incurred by the United States Government and its employees or agents. The Contractor's liability shall not be limited by any provision or limits of insurance set forth in the resulting contract. Nothing herein, however, shall require the Contractor to indemnify or hold harmless the Government from any such claims, damages, losses, or expenses based solely upon the action or omission of the Government. To the extent such claims, damages, or losses are caused by the concurrent negligence of the Contractor and the Government, the Contractor will indemnify and hold harmless the Government to the full extent of the Contractor's share of such concurrent negligence.

The Contractor shall obtain and keep in force during the term of this contract, or as otherwise required, the following minimum insurance:

- (1) Workers compensation insurance. Minimum required by law.
- (2) Comprehensive or commercial general liability insurance.
 - Personal injury and property damage coverage
 - Contractual liability coverage
 - Completed operations liability coverage
 - \$1,000,000 combined single limit for each occurrence
 - \$2,000,000 general aggregate limit
- (3) Automobile liability insurance. \$1,000,000 combined single limit for each occurrence.

Errors and omissions insurance with a minimum limit of \$1,000,000 per claim and in the aggregate, covering the negligent acts, errors, omissions of the Contractor in performance of the work under the Contract. Such insurance shall remain in effect for three years after completion of work under the contract.

The Contractor shall submit a Certificate of Insurance showing evidence of Coverage on ISO Form CG0001, or its equivalent, as outlined above within fifteen (15) days after award of this contract to:

Ryan Phillips
Contracting Officer
Federal Highway Administration
Central Federal Lands Highway Division
12300 West Dakota Avenue, Suite 360
Lakewood, Colorado 80228

The Government will not make any payments until the Contractor has furnished the Certificate of Insurance form.

Any additional liability coverage required will be identified in TOs and addressed separately.

The Contractor shall provide the Certificate of Insurance annually and maintain equal insurance requirements with all subcontractors and shall provide to the Government, upon request by the CO, proof of this insurance requirement, prior to commencement of any work by the subcontractor.

ARTICLE XII - ORDER OF PRECEDENCE

The Contract Clauses and Articles are intended to be complimentary. In case of any inconsistency in the contract, the inconsistency shall be resolved by giving precedence in the following order:

- (1) Contract Clauses, 48 CFR, Chapter 1 (Federal Acquisition Regulation)
- (2) Contract Clauses, 48 CFR, Chapter 12 (Transportation Acquisition Regulation)
- (3) Articles

ARTICLE XIII – ORGANIZATIONAL CONFLICT OF INTEREST

The Contractor shall conduct all work under this contract in a manner that avoids any actual or potential organizational conflict of interest (OCI) as defined in RFO Subpart 9.5. The Contractor shall promptly disclose in writing to the Contracting Officer any situation, relationship, or interest that may result in an actual or apparent OCI, including but not limited to:

- (1) Access to non-public information;
- (2) Impaired objectivity;
- (3) Or an unfair competitive advantage.

If the Contractor becomes aware of a potential OCI during performance, the Contractor shall immediately notify the Contracting Officer and provide a detailed description of the circumstances, along with a proposed mitigation plan. The Government will review the information and determine whether the conflict can be mitigated, neutralized, or waived in accordance with applicable regulations.

The Contractor shall not perform any work that the Contracting Officer determines to constitute an unmitigable OCI. Failure to disclose or properly address an OCI may result in termination of the contract, disqualification from future work, or other remedies available to the Government.

ARTICLE XIV – SUPPORTING DOCUMENTATION

The Contractor shall submit adequate supporting documentation with each invoice to substantiate all costs billed under this contract. Documentation must include, at a minimum:

- (1) Labor Hours — Individual employee timesheets that identify the dates worked, hours charged, labor category, and a description of work performed. Timesheets must be certified by both the employee and the Contractor's supervisor.
- (2) Vehicle Rental Costs — A copy of the rental agreement, including rental period, daily or weekly rate, mileage charges (if applicable), and any associated fees.
- (3) Other Direct Costs — Receipts, invoices, or other verifiable records that clearly identify the item or service purchased, the date of purchase, the cost incurred, and the purpose as it relates to contract performance.

Invoices submitted without the required supporting documentation may be rejected or returned to the Contractor for correction.

End of Section C

SECTION D - PACKAGING AND MARKING

D.1 PRESERVATION AND PACKAGING

Preservation, packing, and packaging of articles called for in TOs under this contract shall be in accordance with good commercial practices to assure delivery at destination in good condition.

D.2 MARKING REQUIREMENTS

For identification purposes, the outside packing container for each package shall be marked with the following information: complete destination, contract number, TO number, and name and address of the contractor.

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End of Section D

INSPECTION AND ACCEPTANCE

E.1 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES (Incorporated by Reference – *See FAR Clause 52.252-2*)

<u>NUMBER</u>	<u>TITLE</u>	<u>DATE</u>
52.246-4	Inspection of Services – Fixed Price	Aug 1996

E.2 POINT(S) OF DELIVERY AND INSPECTION/ACCEPTANCE

The points of delivery set forth in Section C, Article VIII are hereby designated as the places for final inspection and acceptance.

E.3 PERFORMANCE PERIOD FOR INSPECTION/ACCEPTANCE

Unless otherwise specified in an individual TO, inspection and final acceptance will be performed Monday through Friday, 7:00 am to 4:30 pm (local time in Lakewood, Colorado). Deliverables in TOs shall be due no later than Close of Business (4:30 pm, local time in Lakewood, Colorado) on the due date shown in the TO, otherwise the deliverables will be logged in the next day and considered late.

End of Section E

SECTION F - DELIVERIES OR PERFORMANCE

F.1 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES (Incorporated by Reference – *See Clause 52.252-2*)

<u>NUMBER</u>	<u>TITLE</u>	<u>DATE</u>
52.242-14	Suspension of Work	Apr 1984
52.242-15	Stop Work Order, Alternate I (Apr 1984)	Aug 1989

F.2 MONTHLY PROGRESS REPORTS

A monthly progress report is required to be completed and submitted during the performance of each TO. As a minimum, the report will cover the following items:

- (1) The work performed during the previous month;
- (2) Significant findings, problems, delays, inclusions, events, trends, etc., of the reporting period which result from or affect the performance of the contract;
- (3) Detailed technical description of the work planned for the next reporting period;
- (4) Specific action required by the Government to assist in the resolution of a problem or to affect the timely progression of the contract; and
- (5) Up-to-date schedules of the work performed and work to be performed on the contract; and

F.3 TECHNICAL REPORTS

At the direction of the CO, TOs may include the following types of reports:

- (1) Letter - The letter report will be used primarily for smaller tasks, such as data verification analyses, field support visits, task planning documents, literature searches, study plans, conference planning documents, and schedules; and
- (2) Technical - The technical report will be used for major tasks and may include earlier letter type reports as subsections. The technical report will be in a format suitable for publication in accordance with the Contract Requirements or specific TO requirements.

If a technical report is required by the Contractor, the TO will specify the type of report and the number of copies required. The reports submitted shall be subject to review and approval by the FHWA COR, and if necessary, will be modified and resubmitted by the Contractor.

F.4 MEETINGS AND ORAL PRESENTATIONS

The Contractor may be required to meet with the COR at regular intervals to discuss the status of the work and make oral presentations. In addition, the Contractor may be required to meet with the COR and other personnel engaged in the program at a location to be established by the COR to discuss critical areas revealed by the Contractor's work.

F.5 COMMENCEMENT AND COMPLETION DATES

The commencement dates and completion dates for the work required under a TO will be set forth in each order. The Contractor is required to track, monitor, and report on all TO deliverable and completion dates as part of their progress report.

F.6 DELIVERY/PERFORMANCE

Delivery/performance under this contract, within the overall period of performance as set forth in Sections B and I of the Contract, will be based on the issuance by the CO of a TO. **The Contractor shall perform no work until a specific TO is issued. No payment will be made for services provided prior to award of a task order for such services.** For post design services TO, the Contractor shall perform no work until a specific work order is issued.

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End of Section F

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 RESPONSIBILITY FOR CONTRACT ADMINISTRATION

Contracting Officer: The CO has the overall responsibility for this contract. The CO alone, without delegation, is authorized to take actions on behalf of the Government to amend, modify or deviate from the contract terms, conditions, requirements, specifications, details and/or delivery schedules. However, the CO may delegate certain other responsibilities to a COR.

Contracting Officer's Representative: A COR is designated by the CO. The responsibilities of the COR include but are not limited to: inspecting and monitoring the Contractor's work; determining the adequacy of performance by the Contractor in accordance with the terms and conditions of this contract and the TO; acting as the Government's representative in charge of work at the site to ensure compliance with contract requirements insofar as the work is concerned; issuing work orders; and advising the CO of any factors which may cause delay in performance of the work. **The COR does not have the authority to issue directions that cause an increase or decrease in the price of this contract or the TO or otherwise affect any other contract terms.** See TAR clause 1252.242-73, Contracting Officer's Technical Representative (Oct 1994).

The physical and mailing address for the CO and COR is:

Federal Highway Administration
Central Federal Lands Division
12300 West Dakota Avenue
Lakewood, Colorado 80228

End of Section G

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 GOVERNMENT PRINTING OFFICE (GPO) PRINTING REQUIREMENT

All printing funded by this contract will be accomplished in conformance with Title 44, United States Code, regulations of Joint Committee on Printing, applicable provisions of appropriation acts, and applicable regulations issued by the GPO and the Department of Transportation.

H.2 GOVERNMENT'S RIGHT TO PERFORM WORK

The Government reserves the right to accomplish any work within the scope of this contract either by Government personnel or by another separate contract(s) at the discretion of the CO.

H.3 ISSUANCE OF TASK ORDERS

Firm-Fixed-Price task orders will be issued under this contract.

As work requirements materialize, within the period of performance set forth herein, the CO will direct the Contractor to perform work as generally described in Section C. The CO will issue such directions to the Contractor in the form of a TO. Prior to issuance of any TO, the CO will discuss with the Contractor the work to be performed, the timing thereof, and will negotiate the firm fixed-price cost thereof, in accordance with their COR delegation of authority. Except as specifically provided herein, the Government makes no representation as to the number of TOs or the actual amount of work that will be assigned. **The Contractor shall not perform any work nor incur any cost until it receives a specific TO signed by the CO or verbal authorization from the CO.**

Firm-Fixed-Price task orders shall be awarded by one of two methods allowable per FAR 16.505(b): Contracting Officer (CO) determination and competition method. The method to be used will be determined by the CO for each TO.

CO DETERMINATION METHOD

1. The CO determines that the work must be procured from only one IDIQ holder and documents the file citing reasons why the firm was selected and why fair opportunity was not provided to all IDIQ contract holders.
2. The CO sends a Request for Proposal (RFP) to the selected Firm.
3. Within the timeframes established in the RFP the Firm provides a price proposal to the Government with the following:
 - (1) Proposed changes to the Statement of Work.
 - (2) A price proposal based on the loaded hourly rates and per diem rates contained within the contract. The proposal must show work hours, contract rates, and total direct labor costs for each personnel classification. Total direct costs must be broken into per diem, vehicle rental, and other factors, and be based on the current government rates. Other direct costs not included in overhead should be listed and justified with the appropriate back-up data.
4. The CO reviews the proposal and schedules a level of effort discussion or proceeds with negotiations as necessary.
5. The negotiation determines the finalized scope of work, personnel, period of performance and establishes the Firm-Fixed Price.
6. In the event the Government cannot negotiate a fair and reasonable price for the work to be performed, the Government will terminate negotiations and proceed to negotiate with a different IDIQ contract

holder. This selection process will be followed until the Government negotiates a fair and reasonable price with an IDIQ contract holder.

COMPETITION METHOD (Fair Opportunity)

1. The CO sends the RFQ to all IDIQ holders with selection criteria defined in the RFQ.
2. All contract holders that choose to respond will provide a technical proposal to the Government within the timeframe established in the RFQ.
3. The Government reviews the technical proposals and selects the most qualified firm based on their technical qualifications.
4. The Government sends a RFP to the highest ranked technical firm.
5. Within the timeframe provided in the RFP the Firm provides a price proposal to the Government with the following:
 - 1) Proposed changes to the Statement of Work (SOW).
 - 2) A price proposal based on the loaded hourly rates and per diem rates contained within the contract. The price proposal shall show work hours, contract rates, and total direct labor costs for each personnel classification. Total direct costs shall be broken into per diem, vehicle rental, and other factors based upon the current government rates. Other direct costs not included in overhead should be listed and justified with the appropriate data to back up those costs.
6. The Government reviews the proposal and schedules a level-of-effort discussion if necessary; otherwise, proceeds with negotiations.
7. During negotiations the SOW is finalized, proposed personnel are approved, period of performance is finalized and firm-fixed-price is established.
8. In the event the Government cannot negotiate a fair and reasonable price for the work to be performed, the Government will terminate negotiations and request a proposal from the second most qualified firm.
9. This selection process will be followed until the Government negotiates a fair and reasonable price for the work.

H.4 TYPE OF CONTRACT

This is an IDIQ contract in accordance with FAR 16.202, Firm-fixed-price contracts. TOs will generally be negotiated on a firm-fixed-price basis, however, the Government reserves the right to issue Labor-Hour task order in the event the work cannot be clearly defined.

As required by FAR 16.504(a)(4)(v) and outlined in TAM 1216.505 Ordering (b)(8), The DOT Task and Delivery Order Ombudsman is the Associate Director, Office of Acquisition Policy, Oversight and Business Strategies (M-61) located in the Office of the Senior Procurement Executive (M-60).

M61AcquisitionPolicy@dot.gov

Acquisition Policy, Oversight & Business Strategies
Office of the Senior Procurement Executive
U.S. Department of Transportation

H.5 VOUCHER REVIEW

The Government may, at its sole discretion, arrange for a contractor to review vouchers and supporting data submitted for payment under the provisions of this contract. The Contractor reviewing vouchers and supporting data will perform this function in accordance with contract provisions that prohibit disclosure of proprietary financial data or use of such data for any purpose other than to perform accounts payable services.

H.6 TASK ORDERS

Costs incurred under a TO shall relate only to the performance of the work called for in that TO. The level of effort or the funds allocated to a TO may not be applied to work under any other TO issued under the contract without the written authorization of the CO.

H.7 HANDLING OF DATA

- (1) The Contractor and any of its subcontractors in performance of this contract, may have need for access to and use of various types of data and information in the possession of the Government which the Government obtained under conditions which restrict the Government's right to use and disclose the data and information, or which may be of such a nature that its dissemination or use other than in the performance of this contract, would be adverse to the interests of the Government or other parties. Therefore, the Contractor and its subcontractors agree to abide by any restrictive use conditions on such data and to not:
 - (a) knowingly disclose such data and information to others without written authorization from the CO, unless the Government has made the data and information available to the public; and
 - (b) use for any purpose other than the performance of this contract that data which bears a restrictive marking or legend.
- (2) In the event the work to be performed under this contract requires access to proprietary data of other companies, the Contractor shall obtain agreements from such other companies for such use unless such data is provided or made available to the Contractor by the Government. Two copies of such company-to-company agreements shall be furnished promptly to the CO for information only. These agreements shall prescribe the scope of authorized use or disclosure, and other terms and conditions to be agreed upon between the parties. The Contractor agrees that any such data, whether obtained by the Contractor pursuant to the aforesaid agreement or from the Government shall be protected from unauthorized use or disclosure to any individual, corporation, or organization so long as it remains proprietary.
- (3) Through formal training in company policy and procedures, the Contractor agrees to make employees aware of the absolute necessity to maintain the confidentiality of data and information, as required above, and further aware of the sanctions which may be imposed for divulging either the proprietary data of other companies or data that is obtained from the Government to anyone except as authorized. The Contractor shall obtain from each employee engaged in any effort connected with this contract an agreement in writing, that shall in substance provide that such employee will not, during his/her employment by the Contractor, or thereafter, disclose to others or use for his/her own benefit or the future benefit of any individual any trade secrets, confidential information, or proprietary/restricted data (to include Government "For Official Use Only") documents received in connection with the work under this contract. The Contractor shall furnish a sample form of this agreement to the CO promptly after award.
- (4) The Contractor agrees to hold the Government harmless and indemnify the Government as to any cost/loss resulting from the unauthorized use or disclosure of third-party data or software by the Contractor, its employees, subcontractors, or agents.
- (5) The Contractor agrees to include the substance of this requirement in all subcontracts awarded under this contract. The CO will consider case-by-case exceptions from this requirement for individual subcontracts if:

Section H

- (a) the Contractor considers the application of the prohibitions of this provision to be inappropriate and unnecessary in the case of a particular subcontractor;
 - (b) the subcontractor provides a written statement affirming absolute unwillingness to perform absent some relief from the substance of this prohibition;
 - (c) use of an alternate subcontract source would reasonably detract from the quality of effort; and
 - (d) the Contractor provides the CO timely written advance notice of these and any other extenuating circumstances.
- (6) Upon completion of all work under this contract, the Contractor shall return all such data and information obtained from the Government, including all copies, modifications, adaptations, or combinations thereof, to the CO except as the CO specifically authorizes in writing. Data obtained from another company shall be disposed of in accordance with the Contractor's agreement with that company or, if the agreement makes no provision for disposition, shall be returned to that company. The Contractor shall further certify in writing to the CO that all copies, modifications, adaptations or combinations of such data or information that cannot reasonably be returned to the CO (or to a company), have been deleted from the Contractor's (and any subcontractor's) records and destroyed.
- (7) These restrictions do not limit the Contractor's (or subcontractor's) right to use and disclose any data and information obtained from another source without restriction.
- (8) As used herein, the term "data" includes computer software and is defined in FAR clause 52.227-14, "Rights in Data – General."
- (9) The Contractor shall compile and maintain, for a minimum of 6 years after final payment, all reports, information and records, including electronic media, generated by the work described in this contract and individual TOs. These records shall be available to the FHWA or its designee for review and/or reproduction at reasonable times and at the Contractor's facility.

End of Section H

PART II

SECTION I - CONTRACT CLAUSES

I. 1. FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES (Incorporated by Reference – *See FAR Clause 52.252-2*)

<u>NUMBER</u>	<u>TITLE</u>	<u>DATE</u>
52.202-1	Definitions	Jun 2020
52.203-3	Gratuities	Apr 1984
52.203-5	Covenant Against Contingent Fees	May 2014
52.203-6	Restriction on Subcontractor Sales to the Government	Jun 2020
52.203-7	Anti-Kickback Procedures	Jun 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	May 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	May 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	Jun 2020
52.203-13	Contractor Code of Business Ethics and Conduct	Jun 2020
52.204-4	Printing/Copying Double-Sided on Recycled Paper	May 2011
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	Jun 2020
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-15	Service Contract Reporting for Indefinite-Delivery Contracts	Oct 2016
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
52.209-6	Protecting the Government's Interest when Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	Jun 2020
52.215-2	Audit and Records-Negotiation	Jun 2020
52.215-8	Order of Precedence-Uniform Contract Format	Oct 1997
52.215-10	Price Reduction for Defective Cost or Pricing Data	Aug 2011
52.215-11	Price Reduction for Defective Cost or Pricing Data - Modifications	Jun 2020
52.215-12	Subcontractor Cost or Pricing Data	Jun 2020
52.215-13	Subcontractor Cost or Pricing Data - Modifications	Jun 2020
52.215-18	Reversion or Adjustment of Plans for Post Retirement Benefits (PRB) Other than Pensions	Jul 2005
52.215-19	Notification of Ownership Changes	Oct 1997
52.216-8	Fixed Fee	Jun 2011
52.219-8	Utilization of Small Business Concerns	Feb 2024
52.219-9	Small Business Subcontracting Plan Alternate II (NOV 2016)	Sept 2023
52.219-16	Liquidated Damages – Subcontracting Plan	Sept 2021
52.222-2	Payment for Overtime Premiums	Jul 1990
52.222-3	Convict Labor	Jun 2003
52.222-21	Prohibition of Segregated Facilities	Apr 2015
52.222-26	Equal Opportunity	Sep 2016
52.222-35	Equal Opportunity for Veterans	Jun 2020
52.222-36	Equal Opportunity for Workers with Disabilities	Jun 2020
52.222-37	Employment Reports Veterans	Jun 2020
52.223-6	Drug-Free Workplace	May 2001

52.225-13	Restrictions on Certain Foreign Purchases	Feb 2021
52.227-1	Authorization and Consent	Jun 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement	Jun 2020
52.227-14	Rights in Data – General	May 2014
52.229-3	Federal State and Local Taxes	Feb 2013
52.232-9	Limitations on Withholding of Payments	Apr 1984
52.232-10	Payments Under Fixed-Price Architect-Engineer Contracts	Apr 2010
52.232-17	Interest	May 2014
52.232-20	Limitation of Cost	Apr 1984
52.232-23	Assignment of Claim	May 2014
52.232-26	Prompt Payment for Architect-Engineer Contracts	Jan 2017
52.232-33	Payment by Electronic Funds Transfer – System for Award Management	Oct 2018
52.233-1	Disputes	May 2014
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.236-22	Design Within Funding Limitations	Apr 1984
52.236-23	Responsibility of Architect-Engineer Contractor	Apr 1984
52.236-24	Work Oversight in Architect-Engineer Contracts	Apr 1984
52.236-25	Requirement for Registration of Designers	Jun 2003
52.242-2	Production Progress Reports	Apr 1991
52.242-13	Bankruptcy	Jul 1995
52.243-1	Changes-Fixed Price Alternate III (Apr 1984)	Aug 1987
52.244-2	Subcontracts Alternate I (Jun 2020)	Jun 2020
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services)	Aug 1998
52.244-6	Subcontracts for Commercial Items	Feb 2024
52.245-1	Government Property	Sep 2021
52.245-9	Use and Charges	Apr 2012
52.248-2	Value Engineering-Architect Engineer	Mar 1990
52.249-7	Termination (Fixed-Price Architect-Engineer)	Apr 1984
52.253-1	Computer Generated Forms	Jan 1991

I. 2. TRANSPORTATION ACQUISITION REGULATION (48 CFR CHAPTER 12) CLAUSES
(Incorporated by Reference)

1252.242-71	Contractor Testimony	Nov 2022
1252.242-72	Dissemination of Contract Information	Nov 2022

I.3 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES
(Provided in Full Text)

52.204-1 Approval of Contract (Dec 1989)

This contract is subject to the written approval of the Acquisitions Branch Chief, CFLHD, and shall not be binding until so approved.

(End of clause)

52.216-18 Ordering (Oct 1995)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of a delivery order or task order by the individuals or activities designated in the Schedule. Such orders may be issued **5 years from date of award**.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) If mailed, a delivery order or task order is considered "issued" when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

52.216-19 Order Limitations (Oct 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **\$2,500.00**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor—
 - (1) Any order for a single item in excess of **\$100,000,000**;
 - (2) Any order for a combination of items in excess of **\$100,000,000**;
 - (3) A series of orders from the same ordering office within **365** days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.
- (d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **10** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity (Oct 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

Section I

- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the Quantity of supplies or services designated in the Schedule as the "minimum."
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after ten years from the effective date identified in Standard Form 252.

(End of clause)

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov/browse/index/far>.

52.252-4 Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows: None.

(End of clause)

52.252-6 Authorized Deviations in Clauses (APR 1984)

- (a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.
- (b) The use in this solicitation or contract of any **Department of Transportation** clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

I.4 TRANSPORTATION ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES (Provided in Full Text)

1252.237-73 Key Personnel (Apr 2005)

- (a) The personnel as specified below are considered essential to the work being performed under this contract and may, with the consent of the contracting parties, be changed from time to time during the course of the contract by adding or deleting personnel, as appropriate.
- (b) Before removing, replacing, or diverting any of the specified individuals, the Contractor shall notify the contracting officer, in writing, before the change becomes effective. The Contractor shall submit information to support the proposed action to enable the contracting officer to evaluate the potential impact of the change on the contract. The Contractor shall not remove or replace personnel under this contract until the Contracting Officer approves the change.

The Key Personnel under this Contract are:

-
-
-
-
-

Contractor, Please Provide Names of Key Personnel.

(End of clause)

1252.242-73 Contracting Officers Technical Representative (Oct 1994)

- (a) The CO may designate Government personnel to act as the COTR to perform functions under the contract such as review and/or inspection and acceptance of supplies, services, including construction, and other functions of a technical nature. The CO will provide a written notice of such designation to the Contractor within five working days after contract award or for construction, not less than five working days prior to giving the contractor the notice to proceed. The designation letter will set forth the authorities and limitations of the COTR under the contract.
- (b) The CO cannot authorize the COTR or any other representative to sign documents (i.e., contracts, contract modifications, etc.) that require the signature of the CO.

(End of clause)

(End of Section I)

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS**SECTION J - LIST OF ATTACHMENTS**

<u>ATTACHMENT</u>	<u>TITLE</u>	<u>PAGES</u>
J-1	Specifications for Computer File Compatibility and Exchange	2
J-2	Small Business Subcontracting Plan (Sample subcontracting plan).....	5

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(End of Section J)

PART IV – REPRESENTATIONS AND INSTRUCTIONS

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

K.1 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) PROVISIONS

52.204-8 Annual Representations and Certifications

May 2024

K.2. CERTIFICATE OF CURRENT COST OR PRICING DATA (FAR 15.406-2)

When cost or pricing data are required, the contracting officer must require the contractor to execute a Certificate of Current Cost or Pricing Data, using the format in this paragraph, and must include the executed certificate in the contract file.

CERTIFICATE OF CURRENT COST OR PRICING DATA

This is to certify that, to the best of my knowledge and belief, the cost or pricing data (as defined in section 2.101 of the Federal Acquisition Regulation (FAR) and required under FAR subsection 15.403-4) submitted, either actually or by specific identification in writing, to the Contracting Officer or to the Contracting Officer's representative in support of 6982AF25R000016 are accurate, complete, and current as of _____. **. This certification includes the cost or pricing data supporting any advance agreements and forward pricing rate agreements between the Offeror and the Government that are part of the proposal.

Firm _____

Signature _____

Name _____

Title _____

Date of execution _____ ***

* Identify the Solicitation Number (RFP No.).

**Insert the day, month, and year when price negotiations were concluded and price agreement was reached or, if applicable, an earlier date agreed upon between the parties that is as close as practicable to the date of agreement on price.

*** Insert the day, month, and year of signing, which should be as close as practicable to the date when the price negotiations were concluded and the contract price was agreed to.

(End of certificate)

End of Section K

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) PROVISIONS (Incorporated by Reference)

<u>NUMBER</u>	<u>TITLE</u>	<u>DATE</u>
52.203-2	Certificate of Independent Price Determination	Apr 1985
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	Sep 2007
52.204-7	System for Award Management	Oct 2018
52.204-13	System for Award Management Maintenance	Oct 2018
52.209-5	Certification Regarding Responsibility Matters	Aug 2020
52.215-16	Facilities Capital Cost of Money	Jun 2003
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	Nov 2021
52.216-27	Single or Multiple Award	Oct 1995
52.222-38	Compliance with Veterans' Employment Reporting Requirements	Feb 2016
52.237-1	Site Visit	Apr 1984

L.2 FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) PROVISIONS (Provided in Full Text)

52.216-1 Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed-Price A-E Indefinite Delivery-Indefinite Quantity contract.

(End of provision)

52.233-2 Service of Protest (Sep 2006)

- (a) Protests, as defined in section 31.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Leslie Karsten, Acting Acquisitions Branch Chief
Federal Highway Administration
Central Federal Lands Highway Division
12300 West Dakota Avenue, Suite 360
Lakewood, Colorado 80228

- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available. Also, the full text of a clause may be accessed electronically at this address:

www.acquisition.gov.

(End of provision)

52.252-3 Alterations in Solicitations (Apr 1984)

Portions of this solicitation are altered as follows: None.

(End of provision)

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(End of Section L)

**SMALL BUSINESS SUBCONTRACTING PLAN for solicitation number
6982AF25R000016**

See attached sample small business subcontracting plan.

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(End of Attachment J2)